PART TWO Religious Society and Religious Liberty in Early America

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Throughout America, as throughout Europe, religious life and political life were intimately tied during the seventeenth and eighteenth centuries. Debates over religious toleration generally concerned whether people holding minority beliefs—be they Catholics in a Protestant country, Protestants in a Catholic nation, or dissenting Protestant groups within either—should be allowed to practice their religion without criminal sanction.

The modern liberal state, set up to protect individual choice against the demands of political, religious, and sometimes economic pressure, did not yet exist. Violent conflict still arose over religious disagreements. One cause of the English Civil War was opposition to Charles I's drive to bring dissenters to heel within the Anglican Church, which Charles was making more "Catholic" in its ceremonies. Religious disagreements could become violent because all sides considered them important. Civil government rested on religious faith and would crumble without it. Moreover, in a time during which people took seriously the possibility of both salvation and damnation, the tendency of particular belief systems to promote or undermine salvation was considered crucial, as was the tendency of particular political institutions to promote or undermine good religion.

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The Bloody Tenent, of Persecution, for Cause of Conscience

ROGER WILLIAMS

1644

Roger Williams (1603–83) began his career as a minister in the Church of England. His Puritan ideas caused him to immigrate to New England in 1631, where his religious beliefs continued to change. He first became a kind of Baptist, then refused to adhere to any single Christian doctrine. He was banished from Massachusetts Bay in 1636 for preaching his beliefs. Soon thereafter, Williams helped found the colony of Rhode Island. This colony lacked a charter, so, in 1643, Williams returned to England to secure one. He also set about writing *The Bloody Tenent, of Persecution, for Cause of Conscience, discussed, in a Conference betweene Truth and Peace.* The "conference" between Truth and Peace (with Truth speaking for Williams) begins after the portion reproduced here. This portion is taken up with Williams's dedication to the English parliament and a "letter" that Williams sent to Puritan leader John Cotton, which was purportedly written by a man who had been imprisoned for his religious beliefs. The letter seeks Cotton's opinion as to whether the persecution of religious dissent can ever be properly imposed. Williams's book begins with this letter, which is followed by Cotton's reply, which in turn is followed by the conference between Truth and Peace.

The Bloody Tenent, of Persecution, for Cause of Conscience

To the Right Honorable, both Houses of the High Court of Parliament

Right Honourable and Renowned Patriots:

Next to the saving of your own *soules* (in the lamentable *shipwrack* of *Mankind*) your taske (as *Christians*) is to save the *Soules,* but as *Magistrates,* the *Bodies* and *Goods* of others.

Many excellent *Discourses* have been presented to your *Fathers* hands and Yours in former and present *Parliaments:* I shall be humbly bold to say, that (in what concernes your duties as *Magistrates,* towards others) a more necessary and seasonable *debate* was never yet presented.

Two things your *Honours* here may please to view (in this Controversie of *Persecution* for cause of *Conscience*) beyond what's extant.

First the whole *Body* of this *Controversie* form'd & pitch'd in true *Battalia.*

Secondly (although in respect of my selfe it be *impar congressus,* yet in the power of that *God* who is *Maximus in Minimis,* Your Honours shall see the Controversie is discussed with men as able as most, eminent for *abilitie* and *pietie,* Mr. *Cotton,* and the *New English Ministers.*

When the *Prophets* in Scripture have given their *Coats of Armes* and *Escutchions* to *Great Men,* Your *Honours* know the *Babylonian Monarch* hath the *Lyon,* the *Persian* the *Beare,* the *Grecian* the *Leopard,* the *Romane* a *compound* of the former 3. most strange and dreadfull, *Dan.* 7.

Their oppressing, plundring, ravishing, murthering, not only of the *bodies,* but the *soules* of Men are large explaining *commentaries* of such similitudes.

Your *Honours* have been famous to the end of the World, for your unparallel'd *wisdome, courage, justice, mercie,* in the vindicating your Civill *Lawes, Liberties,* &c. Yet let it not be grievous to your *Honours* thoughts to ponder a little, why all the *Prayers* and *Teares* and *Fastings* in this Nation have not pierc'd the *Heavens,* and quench'd these *Flames,* which yet who knowes how far they'll spread, and when they'll out!

Your *Honours* have broke the jawes of the *Oppressour,* and taken the prey out of their Teeth (*Iob.* 29.) For which Act I believe it hath pleased the most High *God* to set a *Guard* (not only of Trained Men, but) of mighty *Angels,* to secure your sitting and the Citie.

I feare we are not *pardoned,* though *reprieved:* O that there may be a lengthning of *Londons* tranquilitie, of the *Parliaments* safetie, by *mercy* to the *poore!* Dan. 4.

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Right Honorable, *Soule yokes, Soule oppression, plundrings, ravishings, &c.* are of a *crimson* and *deepest dye,* and I believe the chiefe of *Englands* sins, unstopping the Viols of *Englands* present sorrowes.

This glasse presents your *Honours* with *Arguments* from *Religion, Reason, Experience,* all proving that the greatest yoakes yet lying upon *English necks,* (the *peoples* and Your *own*) are of a *spirituall* and *soule* nature.

All former *Parliaments* have changed these yoakes according to their *consciences,* (*Popish* or *Protestant*) 'Tis now your *Honours* turne at *helme,* and (as your *task,* so I hope your *resolution,* not to change (for that is but to turne the wheele, which another *Parliament,* and the very next may turne againe:) but to ease the Subjects and Your selves from a *yoake* (as was once spoke in a case not unlike *Act.* 15.) which neither You nor your Fathers were ever able to beare.

Most *Noble Senatours,* Your *Fathers* (whose *seats* You fill) are mouldred, and mouldring their *braines,* their *tongues,* &c. to *ashes* in the pit of *rottenesse:* They and You must shortly (together with two *worlds* of men) appeare at the great *Barre:* It shall then be no griefe of heart that you have now attended to the *cries* of *Soules, thousands oppressed, millions ravished* by the *Acts* and *Statutes* concerning *Soules,* not yet *repealed.*

Of *Bodies impoverished, imprisoned,* &c. for their *soules* beliefe, yea slaughtered on heapes for *Religions* controversies in the *Warres* of present and former Ages.

"Notwithstanding the successe of later times, (wherein sundry opinions have been hatched about the subject of *Religion*) a man may clearly discerne with his eye, and as it were touch with his finger that according to the verity of holy Scriptures, &c. mens *consciences* ought in no sort to be violated, urged or constrained. And whensoever men have attempted any thing by this violent course, whether openly or by secret meanes, the issue hath beene pernicious, and the cause of great and *wonderfull innovations* in the principallest and mightiest *Kingdomes* and *Countries,* &c.

It cannot be denied to be a pious and prudentiall *act* for Your *Honours* (according to your conscience) to call for the advice of faithfull *Councellours* in the high debates concerning Your owne, and the soules of others.

Yet let it not be imputed as a *crime* for any *suppliant* to the *God* of *Heaven* for You, if in the humble sense of what their soules beleeve, they powre forth (amongst others) these three *requests* at the *Throne* of *Grace.*

First, That neither Your *Honours,* nor those excellent and worthy persons, whose advice you seek, limit the holy *One* of *Israel* to their *apprehensions, debates, conclusions,* rejecting or neglecting the humble and faithfull suggestions of any, though as base as spittle and clay, with which sometimes *Christ Iesus* opens the *eyes* of them that are borne blinde.

Secondly, That the present and future *generations* of the Sons of Men may never have cause to say that such a *Parliament* (as *England* never enjoyed the like) should modell the *worship* of the *living, eternall* and *invisible God* after the *Bias* of any earthly *interest,* though of the highest concernment under the Sunne: And yet, faith that learned Sir *Francis Bacon* (how ever otherwise perswaded, yet thus he confesseth:) "Such as hold *pressure* of *Conscience,* are guided therein by some private *interests* of their owne."

Thirdly, What ever way of *worshipping God* Your owne *Consciences* are perswaded to walke in, yet (from any bloody *act* of violence to the consciences of others) it may bee never told at *Rome* nor *Oxford,* that the *Parliament* of *England* hath committed a greater *rape,* then if they had forced or ravished the bodies of all the women in the *World.*

And that *Englands Parliament* (so famous throughout all Europe and the World) should at last turne *Papists, Prelatists, Presbyterians, Independents, Socinians, Familists, Antinomians,* &c. by confirming all these sorts of Consciences, by Civill force and violence to their Consciences.

Scriptures and Reasons written long since by a Witnesse of Jesus Christ, close Prisoner in Newgate, against Persecution in cause of Conscience; and sent some while since to Mr. Cotton, by a Friend who thus wrote:

In the multitude of Councellours there is safety: It is therefore humbly desired to be instructed in this point: viz.

Whether Persecution for cause of Conscience be not against the Doctrine of Jesus Christ the King of Kings. The Scriptures and Reasons are these.

Because *Christ* commandeth that the *Tares* and *Wheat* (which some understand are those that walke in the *Truth,* and those that walke in *Lies*) should be *let alone* in the *World,* and not *plucked* up untill the *Harvest,* which is the end of the *World, Matth.* 13. 30. 38. &c.

The same commandeth *Matth.* 15. 14. that they that are *Blinde* (as some interpret, led on in false *Religion,* and are

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offended with him for teaching true *Religion*) should be *let alone,* referring their punishment unto their falling into the *Ditch.*

Againe, *Luke* 9. 54, 55. hee reproved his *Disciples* who would have had *Fire* come downe from Heaven and devoure those *Samaritanes* who would not receive Him, in these words: Ye know not of what *Spirit* ye are, the son of Man is not come to destroy *Mens lives,* but to save them.

Paul the Apostle of our Lord teacheth, 2 *Tim.* 24. 2. That the servant of the Lord must not *strive,* but must be *gentle* toward *all Men,* suffering the Evill Men, instructing them with *meeknesse* that are contrary minded, proving if *God* at any time will give them *repentance,* that they may acknowledge the Truth, and come to *amendment* out of that snare of the *devill,* &c.

According to these blessed *Commandements,* the holy *Prophets* foretold, that when the *Law* of *Moses* (concerning *Worship*) should cease, and *Christs Kingdome* be established, *Esa.* 2. 4. *Mic.* 4. 3, 4. They shall breake their *Swords* into *Mathookes,* and their *Speares* into *Sithes.* And *Esa.* 11. 9. Then shall none hurt or destroy in all the *Mountaine* of my Holinesse, &c. And when he came, the same he *taught* and *practised,* as before: so did his *Disciples* after him, for the *Weapons* of his *Warfare* are not *carnall* (saith the Apostle) 2 *Cor.* 10. 4.

But he chargeth straitly that his Disciples should be so far from persecuting those that would not bee of their Religion, that when they were *persecuted* they should *pray* (*Matth.* 5.) when they were *cursed* they should *blesse,* &c.

And the Reason seemes to bee, because they who now are *Tares,* may hereafter become *Wheat;* they who are now *blinde,* may hereafter *see;* they that now *resist* him, may hereafter *receive* him; they that are now in the *devils snare,* in *adversenesse* to the *Truth,* may hereafter come to *repentance;* they that are now *blasphemers* and *persecutors* (as *Paul* was) may in time become *faithfull* as he; they that are now *idolators* as the *Corinths* once were (1 *Cor.* 6. 9.) may hereafter become *true worshippers* as they; they that are now *no people* of *God,* nor under *mercy* (as the Saints sometimes were, 1 *Pet.* 2. 20.) may hereafter become the people of *God,* and obtaine *mercy,* as they.

Some come not till the 11. houre, *Matth.* 20. 6. if those that come not till the *last houre* should be *destroyed,* because they come not at the *first,* then should they never come but be prevented.

All which *premises* are in all humility referred to your godly wise *consideration.*

Because this *persecution* for cause of *conscience* is against the *profession* and *practice* of *famous Princes.*

First, you may please to consider the speech of *King James,* in his *Majesties Speech* at *Parliament,* 1609. He saith, it is a sure *Rule* in *divinity,* that God never loves to plant his *Church* by *violence* and *bloodshed.*

And in his *Highnesse Apologie,* pag. 4. speaking of such *Papists* that tooke the Oath, thus:

"I gave good proofe that I intended no *persecution* against them for *conscience* cause, but onely desired to bee secured for *civill obedience,* which for *conscience* cause they are bound to performe."

And pag. 60. speaking of *Blackwell*[1] (the *Arch-priest*) his *Majesty* saith, "It was never my intention to lay any thing to the said *Arch-Priests* charge (as I have never done to any) for *cause of conscience.*" And in his *Highnesse Exposition* on *Revel.* 20. printed 1588. and after [in] 1603. his *Majesty* writeth thus: "Sixthly, the compassing of the *Saints* and the *besieging* of the *beloved City,* declareth unto us a certaine *note* of a *false Church,* to be *Persecution,* for they come to seeke the *faithfull,* the *faithfull* are them that are sought: the *wicked* are the *besiegers,* the *faithfull* are the *besieged.*"

Secondly, the saying of *Stephen* King of *Poland:*[2] "I am *King* of *Men,* not of *Consciences,* a Commander of *Bodies,* not of *Soules.*"

Thirdly, the *King* of *Bohemia* hath thus written:

"And notwithstanding the successe of the later times (wherein sundry *opinions* have beene hatched about the subject of *Religion*) may make one clearly discerne with his *eye,* and as it were to touch with his *Finger,* that according to the veritie of *Holy Scriptures,* and a *Maxime* heretofore

1. George Blackwell, a Roman Catholic divine, was commissioned to act as archpriest over the secular clergy in England by Cardinal Cajetan, March 7, 1598, in order to meet some of the difficulties arising from the lack of a Romish episcopate, and was confirmed and approved by a bull from Pope Clement VIII, April 6, 1599. He took the oath of allegiance enacted in consequence of the Gunpowder Plot, and openly expressed his approbation of it, though Paul V. had condemned it. His superiors at Rome could not endure his attempts to induce Roman Catholics to take the oath, and he was superseded in 1508. Rose, Biog. Dict., IV; Wood's Athenae Oxonienses, ii: 122.— Ed.

2. Stephen Bathori was King of Poland 1575–1586. Though a convert to the Roman Church he used no intolerance towards his Protestant subjects. He said, "I reign over persons; but it is God who rules the conscience. Know that God has reserved three things to himself; the creation of something out of nothing, the knowledge of futurity, and the government of the conscience." *Lardner's Cabinet Cyclopedia, Poland,* p. 167.—Ed.

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told and maintained, by the ancient Doctors of the *Church;* That *mens consciences* ought in no sort to bee *violated, urged,* or *constrained;* and whensoever men have attempted any thing by this *violent course,* whether openly or by secret meanes, the issue hath beene *pernicious,* and the cause of great and wonderfull *Innovations* in the principallest and mightiest *Kingdomes* and *Countries* of all Christendome."

And further his *Majesty* saith: "So that once more we doe professe before *God* and the *whole World,* that from this time forward wee are firmly resolved not to *persecute* or *molest,* or suffer to be *persecuted* or *molested,* any person whosoever for *matter of Religion,* no not they that professe *themselves* to be of the *Romish Church,* neither to trouble or disturbe them in the exercise of their *Religion,* so they live conformable to the *Lawes* of the *States,* &c."[3]

And for the practice of this, where is *persecution* for cause of *conscience* except in *England* and where *Popery* reignes, and there neither in all places, as appeareth by *France, Poland,* and other places.

Nay, it is not practised amongst the *Heathen* that acknowledge not the *true God,* as the *Turke, Persian,* and others.

Thirdly, because *persecution* for cause of conscience is condemned by the ancient and later *Writers,* yea and *Papists* themselves.

Hilarie against *Auxentius*[4] saith thus: The *Christian Church* doth not *persecute,* but is *persecuted.* And lamentable it is to see the great folly of these times, and to sigh at the foolish opinion of this world, in that men thinke by humane aide to helpe *God,* and with worldly pompe and power to undertake to defend the *Christian Church.* I aske you *Bishops,* what helpe used the *Apostles* in the publishing of the *Gospel?* with the aid of what power did they preach *Christ,* and converted the *Heathen* from their *idolatry* to *God?* When they were in *prisons,* and lay in *chaines,* did they praise and give thankes to God for any *dignities, graces,* and *favours* received from the *Court?* Or do you thinke that *Paul* went about with *Regall Mandates,* or *Kingly authority,* to gather and establish the *Church* of *Christ?* sought he *protection* from *Nero, Vespasian?*

The *Apostles* wrought with their *hands* for their owne *maintenance,* travailing by *land* and *water* from *Towne* to *Citie,* to preach *Christ:* yea the more they were *forbidden,* the more they *taught* and preached *Christ.* But now alas, *humane helpe* must *assist* and *protect* the *Faith,* and give the same countenance to and by vaine and *worldly honours.*[5] Doe men seek to defend the *Church of Christ?* as if hee by his power were unable to performe it.

The same against the *Arrians.*

The *Church* now, which formerly by induring *misery* and *imprisonment* was knowne to be a *true Church,* doth now terrifie others by *imprisonment, banishment,* and *misery,* and boasteth that she is highly esteemed of the *world,* when as the true *Church* [she] cannot but be hated of the same.

Tertull. ad Scapulam:[6] It agreeth both with *humane reason,* and *naturall equity,* that every man *worship* God uncompelled, and beleeve what he will; for it neither hurteth nor profiteth any one another mans *Religion* and *Beleefe:* Neither beseemeth it any *Religion* to compell another to be of their *Religion,* which willingly and freely should be imbraced, and not by constraint: for as much as the *offerings* were required of those that freely and with good will offered, and not from the *contrary.*

Jerom. in proaem. lib. 4. *in Jeremiam.*[7] Heresie must be cut off with the *Sword* of the *Spirit:* let us strike through with the *Arrowes* of the *Spirit* all *Sonnes* and *Disciples* of mis-led *Heretickes,* that is, with *Testimonies* of holy *Scriptures.* The slaughter of *Heretickes* is by the word of God.

3. This paragraph, quoted also in the Address to Parliament, p. 7, is from the manifesto issued by the Elector Palatine, Frederick the Fifth, who had been elected King of Bohemia against Ferdinand the Second, Archduke of Austria and Emperor of Germany, at the beginning of the Thirty Years War. Schiller, *Thirty Years War,* Book I. James the First, whose daughter he married, was entirely opposed to his taking the crown, and refused to recognise him. Hume, *History of England,* Chap. 48. It was in the same year (1620) in which he was defeated that this "Humble Supplication" from which these "Scriptures and Reasons" are taken was printed. The Commons had boldly declared their sympathy with his misfortunes, and so circumstances gave significance to opinions uttered by one who was considered a representative of the Protestant cause, and which were so much in advance of those of James. Brandt, *The History of the Reformation in and about the Low Countries,* iv: lib. 52, p. 200.—Ed.

4. S. Hilarii Opera, Lib. I, Contra Arianos vel Auxentium, Cap. 3, 4, pp. 465, 466; Venetiis, 1749.—Ed.

5. This sentence may be read with a period after "countenance," the remaining words being connected with the following interrogation: or by changing the order of the words, thus, "and give countenance to the same by vaine and worldly honours."—Ed.

6. Tertulliani Opera, Tom. 1, Cap. 2, p. 152, Antverpiae, 1583; Lib'ry of Fathers, Tertullian, i: 143, Oxford, 1842.—Ed.

7. S. Hieronymi Opera, in praemium lib. 4, in Jeremiam, pp. 615–616, Parisiis, 1704. Only the first member of this sentence is found in the place cited. "*Quod si cavendum nobis est, ne veterem laedere videamur necessitudinem, si superbissimam haeresim spirituali mucrone truncemus.*"—Ed.

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Brentius[8] upon 1 *Cor.* 3. No man hath power to make or give Lawes to *Christians,* whereby to binde their *consciences;* for willingly, freely, and uncompelled, with a ready desire and cheerfull minde, must those that come, run unto *Christ.*

Luther in his Booke of the *Civill Magistrate*[9] saith; The *Lawes* of the *Civill Magistrates* government extends no further then over the *body* or *goods,* and to that which is *externall:* for over the *soule God* will not suffer any man to *rule:* onely he *himselfe* will rule there. Wherefore whosoever doth undertake to give *Lawes* unto the *Soules* and *Consciences* of Men, he usurpeth that *government* himselfe which appertaineth unto *God,* &c.

Therefore upon 1 *Kings* 5.[10] In the building of the *Temple* there was no *sound* of *Iron* heard, to signifie that *Christ* will have in his *Church* a *free* and a *willing* People, not compelled and constrained by *Lawes* and *Statutes.*

Againe he saith upon *Luk.* 22.[11] It is not the true *Catholike Church,* which is defended by the *Secular Arme* or humane Power, but the *false* and *feigned Church,* which although it carries the *Name* of a *Church* yet it denies the power thereof.

And upon *Psal.* 17.[12] he saith: For the true *Church* of *Christ* knoweth not *Brachium saeculare,* which the *Bishops* now adayes, chiefly use.

Againe, in *Postil. Dom.* 1. *post Epiphan.*[13] he saith: Let not *Christians* be *commanded,* but *exhorted:* for, He that willingly will not doe that, whereunto he is friendly exhorted, he is no *Christian:* wherefore they that doe compell those that are not willing, shew thereby that they are not *Christian Preachers,* but *Worldly Beadles.*

Againe, upon 1 *Pet.* 3.[14] he saith: If the *Civill Magistrate* shall command me to believe thus and thus: I should answer him after this manner: *Lord,* or *Sir,* Looke you to your *Civill* or *Worldly Government,* Your Power extends not so farre as to command any thing in *Gods Kingdome:* Therefore herein I may not heare you. For if you cannot beare it, that any should usurpe *Authoritie* where you have to Command, how doe you thinke that *God* should suffer you to thrust him from his Seat, and to seat your selfe therein?

Lastly, the Papists, the *Inventors of Persecution,* in a wicked Booke of theirs set forth in *K. James* his *Reigne,* thus:

Moreover, the *Meanes* which *Almighty God* appointed his Officers to use in the Conversion of *Kingdomes* and *Nations,* and People, was *Humilitie, Patience, Charitie;* saying, Behold I send you as *Sheepe* in the midst of *Wolves,* Mat. 10. 16. He did not say, Behold I send you as *Wolves* among *Sheepe,* to kill, imprison, spoile and devoure those unto whom they were sent.

Againe *vers.* 7. he saith: They to whom I send you, will deliver you up into *Councells,* and in their *Synagogues* they will scourge you; and to *Presidents* and to *Kings* shall you be led for my sake. He doth not say: You whom I send, shall deliver the people (whom you ought to convert) unto *Councells,* and put them in Prisons, and lead them to *Presidents,* and *Tribunall Seates,* and make their *Religion Felony* and *Treason.*

Againe he saith, *vers.* 32. When ye enter into an House, salute it, saying, Peace be unto this House: he doth not say, You shall send *Pursevants* to ransack or spoile his House.

Againe he said, *John* 10. The good *Pastour* giveth his life for his Sheep, the *Thiefe* commeth not but to steale, kill and destroy. He doth not say, The *Theefe* giveth his life for his Sheep, and the Good *Pastour* commeth not but to steale, kill and destroy.

So that we holding our peace, our *Adversaries* themselves speake for us, or rather for the Truth.

To Answer Some Maine Objections

And first, that it is no *prejudice* to the *Common wealth,* if *Libertie of Conscience* were suffred to such as doe feare *God* indeed, as is or will be manifest in such mens lives and conversations.

Abraham abode among the *Canaanites* a long time, yet contrary to them in *Religion,* Gen. 13. 7. & 16. 13. Againe he sojourned in *Gerar,* and K. *Abimelech* gave him leave to abide in his Land, *Gen.* 20. 21. 23. 24.

8. The works of Brentius, 8 vols. folio, Tubingen, 1575–1590, are not within the Editor's reach, nor on the catalogues of any of the public libraries of the country, so far as examined.—Ed.

9. Luther's Sämtliche Schriften, herausgegeben J. G. Walch, 10r Theil, 452. Halle. 1744.—Ed.

10. Schriften, x: 438.—Ed.

11. Schriften, xiii: 2818. Auslegung des Evangelii am Bartholomews Tag, Luke xxii: 24–30. "God will keep and govern his Church only by his Word, and not by human power." It may be that the reference is to some other passage.—Ed.

12. This passage is not found in his explanation of the 117th Psalm, Theil 4r, 1261.—Ed.

13. Schriften, xii: 429. Auslegung der Epistel am ersten Sonntage nach Epiphania.—Ed.

14. Schriften, ix: 740. Auslegung der ersten Ep. Petri, cap. 2, v. 17. —Ed.

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Isaack also dwelt in the same Land, yet contrary in *Religion,* Gen. 26.

Jacob lived 20 yeares in one House with his Unkle *Laban,* yet differed in *Religion,* Gen. 31.

The people of *Israel* were about 430 yeares in that infamous land of *Egypt,* and afterwards 70 yeares in *Babylon,* all which time they differed in *Religion* from the States, *Exod.* 12. & 2 *Chron.* 36.

Come to the time of *Christ,* where *Israel* was under the *Romanes,* where lived divers Sects of *Religion,* as *Herodians, Scribes* and *Pharises, Saduces* and *Libertines, Thudaeans* and *Samaritanes,* beside the Common Religion of the *Jewes, Christ* and his *Apostles.* All which differed from the Common *Religion* of the State, which was like the Worship of *Diana,* which almost the whole world then worshipped, *Acts* 19. 20.

All these lived under the Government of *Caesar,* being nothing hurtfull unto the *Common-wealth,* giving unto *Caesar* that which was his. And for their *Religion* and Consciences towards God, he left them to themselves, as having no Dominion over their *Soules* and *Consciences.* And when the Enemies of the Truth raised up any *Tumults,* the wisedome of the *Magistrate* most wisely appeased them, *Acts* 18 14. & 19. 35.

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A Platform of Church Discipline

JOHN COTTON, RICHARD MATHER, AND RALPH PARTRIDGE

1649

This "Platform of Church Discipline" was drawn up by John Cotton, Richard Mather, and Ralph Partridge at the request of a synod, or convocation of church leaders, in Massachusetts held in 1648. The General Court, the highest political body in that colony, subsequently adopted it. Approval by a political body of a church document was considered natural in a colony that saw itself founded in a "covenant"—as a community formed for the purpose of following the will of God in its common life—and in which church membership was the key to political participation. The document also reflects the concern to provide for local autonomy among the colony's churches.

A Platform of Church Discipline, Gathered out of the Word of God, and Agreed upon by the Elders and Messengers of the Churches Assembled in the Synod, at Cambridge, in New-England
To Be Presented to the Churches and General Court for Their Consideration and Acceptance in the Lord, the 8th Month, Anno 1649

CHAPTER I

Of the Form of Church-Government; and That It Is One, Immutable, and Prescribed in the Word

1. Ecclesiastical polity, or church-government or discipline, is nothing else but that form and order that is to be observed in the church of Christ upon earth, both for the constitution of it, and all the administrations that therein are to be performed.

2. Church-government is considered in a double respect, either in regard of the parts of government themselves, or necessary circumstances thereof. The parts of government are prescribed in the word, because the Lord Jesus Christ, (Heb. iii. 5, 6; Exo. xxv. 40; 2 Tim. iii. 16,) the King and Law-giver in his church, is no less faithful in the house of God, than was Moses, who from the Lord delivered a form and pattern of government to the children of Israel in the Old Testament; and the holy Scriptures are now also so perfect as they are able to make the man of God perfect, and thoroughly furnished unto every good work; and therefore doubtless to the well-ordering of the house of God.

3. The parts of church-government are all of them exactly described in the word of God, (1 Tim. iii. 15; 1 Chr. xv. 13; Exod. ii. 4; 1 Tim. vi. 13. 16; Heb. xii. 27, 28; 1 Cor. xv. 24,) being parts or means of instituted worship according to the second commandment, and therefore to continue one and the same unto the appearing of our Lord Jesus Christ, as a kingdom that cannot be shaken, until he shall deliver it up unto God, even to the Father. (Deut. xii. 32; Ezek. xlv. 8; 1 Kin. xii. 31, 32, 33.) So that it is not left in the power of men, officers, churches, or any state in the world, to add, or diminish, or alter any thing in the least measure therein.

4. The necessary circumstances, as time and place, &c., belonging unto order and decency, are not so left unto men, as that, under pretence of them, they may thrust their own inventions upon the churches, (2 Kin. xii.; Exo. xx. 19; Isa. xxviii. 13; Col. i. 22, 23,) being circumscribed in the word with many general limitations, where they are determined with respect to the matter to be neither worship it self, nor circumstances separable from worship. (Acts xv. 28; Mat. xv. 9; 1 Cor. xi. 23, and viii. 34.) In respect of their end, they must be done unto edification; in respect of the manner, decently and in order, according to the nature of the things themselves, and civil and church custom. Doth not even nature its self teach you? Yea, they are in some sort determined particularly—namely, that they be done in such a manner as, all circumstances considered, is most expedient for edification: (1 Cor. xiv. 26, and xiv. 40, and xi. 14. 16, and xiv. 12. 19; Acts xv. 28.) So as, if there be no error

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of man concerning their determination, the determining of them is to be accounted as if it were divine.

CHAPTER II

Of the Nature of the Catholick Church in General, and in Special of a Particular Visible Church

1. The catholick church is the whole company of those that are elected, redeemed, and in time effectually called from the state of sin and death unto a state of grace and salvation in Jesus Christ.

2. This church is either triumphant or militant. Triumphant, the number of them who are glorified in heaven; militant, the number of them who are conflicting with their enemies upon earth.

3. This militant church is to be consider'd as invisible and visible. (2 Tim. ii. 19; Rev. ii. 17; 1 Cor. vi. 17; Eph. iii. 17; Rom. i. 8; 1 Thes. i. 8; Isa. ii. 2; 1 Tim. vi. 12.) Invisible, in respect to their relation, wherein they stand to Christ as a body unto the head, being united unto him by the Spirit of God and faith in their hearts. Visible, in respect of the profession of their faith, in their persons, and in particular churches. And so there may be acknowledged an universal visible church.

4. The members of the militant visible church, considered either as not yet in church order, or walking according to the church order of the gospel. (Acts xix. 1; Col. ii. 5; Mat. xviii. 17; 1 Cor. v. 12.) In order, and so besides the spiritual union and communion common to all believers, they enjoy moreover an union and communion ecclesiastical, political. So we deny an universal visible church.

5. The state of the members of the militant visible church, walking in order, was either before the law, (Gen. xviii. 19; Exod. xix. 6,) economical, that is, in families; or under the law, national; or since the coming of Christ, only congregational (the term *independent,* we approve not): therefore neither national, provincial, nor classical.

6. A congregational church is by the institution of Christ a part of the militant visible church, consisting of a company of saints by calling, united into one body by an holy covenant, for the publique worship of God, and the mutual edification of one another in the fellowship of the Lord Jesus. (1 Cor. xiv. 23. 36, and i. 2, and xii. 27; Ex. xix. 5, 6; Deut. xxix. 1, and 9 to 15; Acts ii. 42; 1 Cor. xiv. 26.)

CHAPTER III

Of the Matter of the Visible Church, Both in Respect of Quality and Quantity

1. The matter of the visible church are saints by calling.

2. By saints, we understand—1, Such as have not only attained the knowledge of the principles of religion, and are free from gross and open scandals, but also do, together with the profession of their faith and repentance, walk in blameless obedience to the word, so as that in charitable discretion they may be accounted saints by calling, (tho' perhaps some or more of them be unsound and hypocrites inwardly) because the members of such particular churches are commonly by the Holy Ghost called "saints and faithful brethren in Christ;" and sundry churches have been reproved for receiving, and suffering such persons to continue in fellowship among them, as have been offensive and scandalous; the name of God also, by this means, is blasphemed, and the holy things of God defiled and profaned, the hearts of the godly grieved, and the wicked themselves hardened and holpen forward to damnation. (1 Cor. i. 2; Eph. i. 1; Heb. vi. 1; 1 Cor. i. 5; Ro. xv. 14; Psalm l. 16, 17; Acts viii. 37; Mat. iii. 6; Ro. vi. 17; 1 Cor. i. 2; Phil. i. 2; Col. i. 2; Eph. i. 1; 1 Cor. v. 2. 13; Rev. ii. 14, 15. 20; Ezek. xliv. 7. 9, and xxiii. 38, 39; Numb. xix. 20; Hag. ii. 13, 14; 1 Cor. xi. 27. 29; Psa. xxxvii. 21; 1 Cor. v. 6; 2 Cor. vii. 14.) The example of such doth endanger the sanctity of others, a little leaven leaveneth the whole lump. 2, The children of such who are also holy.

3. The members of churches, tho' orderly constituted, may in time degenerate, and grow corrupt and scandalous, which, tho' they ought not to be tolerated in the church, yet their continuance therein, thro' the defect of the execution of discipline and just censures, doth not immediately dissolve the being of a church, as appears in the church of Israel, and the churches of Galatia and Corinth, Pergamos and Thyatira. (Rev. ii. 14, 15; and xxi. 21.)

4. The matter of the church, in respect of its *quantity,* ought not to be of greater number than may ordinarily meet together conveniently in one place; (1 Cor. xiv. 21; Mat. xviii. 17,) nor ordinarily fewer than may conveniently carry on church-work. Hence, when the holy Scripture makes mention of the saints combined into a church estate in a town or city, where was but one congregation, it

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usually calleth those saints ["the church"] in the singular number, as "the church of the Thessalonians," "the church of Smyrna, Philadelphia," &c.; (Rom. xvi. 1; 1 Thes. i. 1; Rev. ii. 28, and iii. 7,) but when it speaketh of the saints in a nation or province, wherein there were sundry congregations, it frequently and usually calleth them by the name of ["churches"] in the plural number, as the "churches of Asia, Galatia, Macedonia," and the like: (1 Cor. xvi. 1. 19; Gal. i. 2; 2 Cor. viii. 1; Thes. ii. 14,) which is further confirmed by what is written of sundry of those churches in particular, how they were assembled and met together the whole church in one place, as the church at Jerusalem, the church at Antioch, the church at Corinth and Cenchrea, tho' it were more near to Corinth, it being the port thereof, and answerable to a village; yet being a distinct congregation from Corinth, it had a church of its own, as well as Corinth had. (Acts ii. 46, and v. 12, and vi. 2, and xiv. 27, and xv. 38; 1 Cor. v. 4, and xiv. 23; Rom. xvi. 1.)

5. Nor can it with reason be thought but that every church appointed and ordained by Christ, had a ministry appointed and ordained for the same, and yet plain it is that there were no ordinary officers appointed by Christ for any other than congregational churches; (Acts xx. 28,) elders being appointed to feed not all flocks, but the particular flock of God, over which the Holy Ghost had made them overseers, and that flock they must attend, even the whole flock: and one congregation being as much as any ordinary elders can attend, therefore there is no greater church than a congregation which may ordinarily meet in one place.

CHAPTER IV

Of the Form of the Visible Church, and of Church Covenant

1. Saints by calling must have a visible political union among themselves, or else they are not yet a particular church, (1 Cor. xii. 27; 1 Tim. iii. 15; Eph. ii. 22; 1 Cor. xii. 15, 16, 17,) as those similitudes hold forth, which the Scripture makes use of to shew the nature of particular churches; as a *body,* a *building, house, hands, eyes, feet* and other members, must be united, or else (remaining separate) are not a body. Stones, timber, tho' squared, hewen and polished, are not an house, until they are compacted and united: (Rev. ii.) so saints or believers in judgment of charity, are not a church unless orderly knit together.

2. Particular churches cannot be distinguished one from another but by their forms. Ephesus is not Smyrna, nor Pergamos Thyatira; but each one a distinct society of itself, having officers of their own, which had not the charge of others; virtues of their own, for which others are not praised; corruptions of their own, for which others are not blamed.

3. This form is the *visible covenant,* agreement or consent, whereby they give up themselves unto the Lord, to the observing of the ordinances of Christ together in the same society, which is usually call'd the "church covenant." (Ex. xix. 5. 8; Deut. xxix. 12, 13; Zec. xi. 14, and ix. 11,) for we see not otherwise how members can have church-power over one another mutually. The comparing of each particular church to a *city,* and unto a *spouse,* (Eph. ii. 19; 2 Cor. xi. 2,) seemeth to conclude not only a form, but that that form is by way of covenant. The covenant, as it was that which made the family of Abraham and children of Israel to be a church and people unto God, (Gen. xvii. 7; Eph. ii. 12. 18,) so is it that which now makes the several societies of Gentile believers to be churches in these days.

4. This voluntary agreement, consent or covenant—for all these are here taken for the same—altho' the more express and plain it is, the more fully it puts us in mind of our mutual duty; and stirreth us up to it, and leaveth less room for the questioning of the truth of the church-estate of a company of professors, and the truth of membership of particular persons; yet we conceive the substance of it is kept where there is real agreement and consent of a company of faithful persons to meet constantly together in one congregation, for the publick worship of God, and their mutual edification: which real agreement and consent they do express by their constant practice in coming together for the publick worship of God and by their religious subjection unto the ordinances of God there: (Exod. xix. 5, and xx. 8, and xxiv. 3. 17; Josh. xxiv. 18 to 24; Psal. 1. 5; Neh. ix. 38, and x. 1; Gen. xvii.; Deut. xxix.) the rather, if we do consider how Scripture-covenants have been entred into, not only expressly by word of mouth, but by sacrifice, by hand-writing and seal; and also sometimes by silent consent, without any writing or expression of words at all.

5. This form being by mutual covenant, it followeth, it is not faith in the heart, nor the profession of that faith, nor cohabitation, nor baptism. 1, Not *faith in the heart,* be-

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cause that is invisible. 2, Not *a bare profession,* because that declareth them no more to be members of one church than another. 3, Not *cohabitation:* Atheists or Infidels may dwell together with believers. 4, Not *Baptism,* because it presupposeth a church-estate, as circumcision in the Old Testament, which gave no being to the church, the church being before it, and in the wilderness without it. Seals presuppose a covenant already in being. One person is a compleat subject of baptism, but one person is uncapable of being a church.

6. All believers ought, as God giveth them opportunity thereunto, to endeavour to join themselves unto a particular church, and that in respect of the honour of Jesus Christ, in his example and institution, by the professed acknowledgment of and subjection unto the order and ordinances of the gospel: (Acts ii. 47, and ix. 26; Mat. iii. 13, 14, 15, and xxviii. 19, 20; Psa. cxxxiii. 2, 3, and lxxxvii. 7; Mat. xviii. 20; 1 John i. 3,) as also in respect of their good communion founded upon their visible union, and contained in the promises of Christ's special presence in the church; whence they have fellowship with him, and in him, one with another: also in the keeping of them in the way of God's commandments, and recovering of them in case of wandering, (which all Christ's sheep are subject to in this life,) being unable to return of themselves; together with the benefit of their mutual edification, and of their posterity, that they may not be cut off from the privilege of the covenant. (Psa. cxix. 176; 1 Pet. ii. 25; Eph. iv. 16; Job xxii. 24, 25; Mat. xviii. 15, 16, 17.) Otherwise, if a believer offends, he remains destitute of the remedy provided in that behalf. And should all believers neglect this duty of joining to all particular congregations, it might follow thereupon that Christ should have no visible, political churches upon earth.

CHAPTER V

Of the First Subject of Church-Power; Or, to Whom Church-Power Doth First Belong

1. The first subject of church-power is either supreme, or subordinate and ministerial. The supreme (by way of gift from the Father) is the Lord Jesus Christ. (Mat. xviii. 18; Rev. iii. 7; Isa. ix. 6; Joh. xx. 21. 23; 1 Cor. xiv. 32; Tit. i. 5; 1 Cor. v. 12.) The ministerial is either extraordinary, as the apostles, prophets and evangelists; or ordinary, as every particular Congregational church.

2. Ordinary church power is either power of office—that is, such as is proper to the eldership—or power of privilege, such as belongs to the brotherhood. (Rom. xii. 4. 8; Acts i. 23, and vi. 3, and xiv. 23; 1 Cor. x. 29, 30.) The latter is in the brethren formally and immediately from Christ—that is, so as it may be acted or exercised immediately by themselves; the former is not in them formally or immediately, and therefore cannot be acted or exercised immediately by them, but is said to be in them, in that they design the persons unto office, who only are to act or to exercise this power.

CHAPTER VI

Of the Officers of the Church, And Especially of Pastors and Teachers

1. A church being a company of people combined together by covenant for the worship of God, it appeareth thereby that there may be the essence and being of a church without any officers, seeing there is both the form and matter of a church; which is implied when it is said, "the apostles ordained elders in every church." (Acts xiv. 23.)

2. Nevertheless, tho' officers be not absolutely necessary to the simple being of churches, when they be called; yet ordinarily to their calling they are, and to their well-being: (Rom. x. 17; Jer. iii. 15; 1 Cor. xii. 28,) and therefore the Lord Jesus Christ, out of his tender compassion, hath appointed and ordained officers, which he would not have done, if they had not been useful and needful to the church; (Eph. iii. 11; Psa. lxviii. 18; Eph. iv. 8. 11,) yea, being ascended up to heaven, he received gifts for men; whereof officers for the church are justly accounted no small parts, they being to continue to the end of the world, and for the perfecting of all the saints.

3. These officers were either extraordinary or ordinary: extraordinary, as apostles, prophets, evangelists; ordinary, as elders and deacons. The apostles, prophets, and evangelists, as they were called extraordinarily by Christ, so their office ended with themselves: (1 Cor. xii. 28; Eph. iv. 11; Acts viii. 6. 16. 19, and xi. 28; Rom. xi. 13; 1 Cor. iv. 9,) whence it is that Paul, directing Timothy how to carry along church-administration, giveth no direction about the choice or course of apostles, prophets or evangelists,

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but only of elders and deacons; and when Paul was to take his last leave of the church of Ephesus, he committed the care of feeding the church to no other, but unto the elders of that church. The like charge does Peter commit to the elders. (1 Tim. iii. 1, 2. 8 to 13; Tit. i. 5; Acts xx. 17. 28; 1 Pet. v. 1, 2, 3.)

4. Of elders (who are also in Scripture called *bishops*) some attend chiefly to the ministry of the word, as the pastors and teachers; (1 Tim. ii. 3; Phil. i. 1; Acts xx. 17. 28,) others attend especially unto rule, who are, therefore, called *ruling-elders.* (1 Tim. v. 17.)

5. The office of pastor and teacher appears to be distinct. The pastor's special work is, to attend to *exhortation,* and therein to administer a word of *wisdom:* (Eph. iv. 11; Rom. xii. 7, 8; 1 Cor. xii. 8,) the teacher is to attend to *doctrine,* and therein to administer a word of *knowledge:* (1 Tim. iv. 1, 2. Tit. i. 9,) and either of them to administer the seals of that covenant, unto the dispensation whereof they are alike called; as also to execute the censures, being but a kind of application of the word: the preaching of which, together with the application thereof, they are alike charged withal.

6. Forasmuch as both pastors and teachers are given by Christ for the perfecting of the saints and edifying of his body; (Eph. iv. 11, 12, and i. 22, 23,) which saints and body of Christ is his church: and therefore we account pastors and teachers to be both of them church-officers, and not the pastor for the church, and the teacher only for the schools: (1 Sam. x. 12., 19, 20,) tho' this we gladly acknowledge, that schools are both lawful, profitable, and necessary, for the training up of such in good literature or learning as may afterwards be called forth unto office of pastor or teacher in the church. (2 Kings ii. 3. 15.)

CHAPTER VII

Of Ruling Elders and Deacons

1. The ruling elder's office is distinct from the office of pastor and teacher; (Rom. xii. 7, 8, 9; 1 Tim. v. 17; 1 Cor. xii. 28; Heb. xiii. 17; 1 Tim. v. 17,) the ruling elders are not so called to exclude the pastors and teachers from ruling, because ruling and governing is common to these with the other; whereas attending to teach and preach the word is peculiar unto the former.

2. The ruling elder's work is to join with the pastor and teacher in those acts of spiritual rule, which are distinct from the ministry of the word and sacraments committed to them: (1 Tim. v. 17; 2 Chron. xxiii. 19; Rev. xxi. 12; 1 Tim. iv. 14; Matth. xviii. 17; 2 Cor. ii. 7, 8; Acts ii. 6; Acts xxi. 18. 22, 23.) Of which sort these be as followeth: 1, To open and shut the doors of God's house, by the admission of members approved by the church; by ordination of officers chosen by the church, and by excommunication of notorious and obstinate offenders renounced by the church, and by restoring of penitents forgiven by the church. 2, To call the church together when there is occasion, (Acts vi. 2, 3; and xiii. 15,) and seasonably to dismiss them again. 3, To prepare matters in private, that in publick they may be carried an end with less trouble, and more speedy dispatch. (2 Cor. viii. 19; Heb. xiii. 7, 17; 2 Thess. ii. 10, 11, 12.) 4, To moderate the carriage of all matters in the church assembled, as to propound matters to the church. To order the season of speech and silence, and to pronounce sentence according to the mind of Christ, with the consent of the church. 5, To be guides and leaders to the church in all matters whatsoever pertaining to church-administrations and actions. 6, To see that none in the church live inordinately, out of rank and place without a *calling,* or idlely in their calling. (Acts xx. 28. 32; 1 Thess. v. 12; Jam. v. 14; Acts xx. 20.) 7, To prevent and heal such offences in life or in doctrine as might corrupt the church. 8, To feed the flock of God with a word of admonition. 9, And, as they shall be sent for, to visit and pray over their sick brethren. 10, And at other times, as opportunity shall serve thereunto.

3. The office of a deacon is instituted in the church by the Lord Jesus: (Acts vi. 3. 6; Phil. i. 1; 1 Tim. iii. 8; 1 Cor. xii. 28; 1 Tim. iii. 8, 9; Acts iv. 35, and vi. 2, 3; Rom. xii. 8.) Sometimes they are called *helps.* The Scripture telleth us how they should be qualified: "Grave, not double-tongued, not given to much wine, not given to filthy lucre." They must first be proved, and then use the office of a deacon, being found blameless. The office and work of a deacon is to receive the offerings of the church, gifts given to the church, and to keep the treasury of the church, and therewith to serve the tables, which the church is to provide for; as the Lord's table, the table of the ministers, and of such as are in necessity, to whom they are to distribute in simplicity.

4. The office, therefore, being limited unto the care of the temporal good things of the church, (1 Cor. vii. 17,) it

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extends not to the attendance upon, and administration of the spiritual things thereof, as the word, and sacraments, and the like.

5. The ordinance of the apostle, (1 Cor. xvi. 1, 2, 3,) and practice of the church, commends the Lord's-day as a fit time for the contributions of the saints.

6. The instituting of all these officers in the church is the work of God himself, of the Lord Jesus Christ, of the Holy Ghost: (1 Cor. xii. 28; Eph. iv. 8. 11; Acts xx. 28.) And therefore such officers as he hath not appointed, are altogether unlawful, either to be placed in the church or to be retained therein, and are to be looked at as humane creatures, meer inventions and appointments of man, to the great dishonour of Christ Jesus, the Lord of his, the King of his church, whether popes, cardinals, patriarchs, archbishops, lord-bishops, arch-deacons, officials, commissaries, and the like. These and the rest of that hierarchy and retinue, not being plants of the Lord's planting, shall all be certainly rooted out and cast forth. (Matth. xv. 13).

7. The Lord hath appointed ancient widows (1 Tim. v. 9, 10,) (where they may be had) to minister in the church, in giving attendance to the sick, and to give succour unto them and others in the like necessities.

CHAPTER VIII

Of the Election of Church Officers

1. No man may take the honour of a church-officer unto himself but he that was called of God, as was Aaron. (Heb. v. 4.)

2. Calling unto office is either *immediate,* by Christ himself—such was the *call* of the apostles and prophets; (Gal. i. 1; Acts xiv. 23, and vi. 3,) this manner of calling ended with them, as hath been said—or *mediate,* by the church.

3. It is meet that, before any be ordained or chosen officers, they should first be tried and proved, because hands are not suddenly to be laid upon any, and both elders and deacons must be of both honest and good report. (1 Tim. v. 22, and vii. 10; Acts xvi. 2, and vi. 3.)

4. The things in respect of which they are to be tried, are those gifts and vertues which the Scripture requireth in men that are to be elected unto such places, viz: That elders must be "blameless, sober, apt to teach," and endued with such other qualifications as are laid down: 1 Tim. iii. 2; Tit. i. 6 to 9. Deacons to be fitted as is directed: Acts vi. 3; 1 Tim. iii. 8 to 11.

5. Officers are to be called by such churches whereunto they are to minister. Of such moment is the preservation of this power, that the churches exercised it in the presence of the apostles. (Acts xiv. 23, and i. 23, and vi. 3, 4, 5.)

6. A church being free, cannot become subject to any but by a free election; yet when such a people do chuse any to be over them in the Lord, then do they become subject, and most willingly submit to their ministry in the Lord, whom they have chosen. (Gal. v. 13; Heb. xiii. 17.)

7. And if the church have power to chuse their officers and ministers, (Rom. xvi. 17,) then, in case of manifest unworthiness and delinquency, they have power also to depose them: for to open and shut, to chuse and refuse, to constitute in office, and to remove from office, are acts belonging to the same power.

8. We judge it much conducing to the well-being and communion of the churches, (Cant. viii. 8, 9,) that, where it may conveniently be done, neighbour churches be advised withal, and their help be made use of in trial of church-officers, in order to their choice.

9. The choice of such church-officers belongeth not to the civil magistrate as such, or diocesan bishops, or patrons: for of these, or any such like, the Scripture is wholly silent, as having any power therein.

CHAPTER IX

Of Ordination and Imposition of Hands

1. Church-officers are not only to be chosen by the church, (Acts xiii. 3, and xiv. 23,) but also to be ordained by imposition of hands and prayer, with which at the ordination of elders, fasting also is to be joined. (1 Tim. v. 22.)

2. This ordination (Numb. viii. 10; Acts vi. 5, 6, and xiii. 2, 3,) we account nothing else but the solemn putting a man into his place and office in the church, whereunto he had right before by election; being like the installing of a magistrate in the common-wealth. Ordination therefore is not to go before, but to follow election, (Acts vi. 5, 6, and xiv. 23.) The essence and substance of the outward calling of an ordinary officer in the church does not consist in his ordination, but in his voluntary and free election by the church, and his accepting of that election; whereupon is founded that relation between pastor and flock,

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between such a minister and such a people. Ordination does not constitute an officer, nor give him the essentials of his office. The apostles were elders, without imposition of hands by men: Paul and Barnabas were officers before that imposition of hands, (Acts xiii. 3.) The posterity of Levi were priests and Levites before hands were laid on them by the children of Israel.

3. In such churches where there are elders, imposition of hands in ordination is to be performed by those elders. (1 Tim. iv. 10; Acts xiii. 3; 1 Tim. v. 22.)

4. In such churches where there are no elders, (Numb. iii. 10,) imposition of hands may be performed by some of the brethren orderly chosen by the *church* thereunto. For, if the people may elect officers, which is the greater, and wherein the substance of the office doth consist, they may much more (occasion and need so requiring) impose hands in ordination; which is less, and but the accomplishment of the other.

5. Nevertheless, in such churches where there are no elders, and the church so desire, we see not why imposition of hands may not be performed by the elders of other churches. Ordinary officers laid hands upon the officers of many churches: the presbytery at Ephesus laid hands upon Timothy an evangelist; (1 Tim. iv. 14; Acts xiii. 3,) the presbytery at Antioch laid hands upon Paul and Barnabas.

6. Church-officers are officers to one church, even that particular over which the Holy Ghost hath made them overseers. Insomuch as elders are commanded to feed not all flocks, but the flock which is committed to their faith and trust, and dependeth upon them. Nor can constant residence at one congregation be necessary for a minister—no, nor yet lawful—if he be not a minister to one congregation only, but to the church universal; (1 Pet. v. 2; Acts xx. 28,) because he may not attend one part only of the church to which he is a minister, but he is called to attend unto all the flock.

7. He that is clearly released from his office relation unto that church whereof he was a minister, cannot be looked at as an officer, nor perform any act of office in any other church, unless he be again orderly called unto office: which, when it shall be, we know nothing to hinder; but imposition of hands also in his ordination (Acts xx. 28,) ought to be used towards him again: for so Paul the apostle received imposition of hands twice at least from Ananias, (Acts ix. 17, and xiii. 3.)

CHAPTER X

Of the Power of the Church and Its Presbytery

1. Supreme and Lordly power over all the churches upon earth doth only belong to Jesus Christ, who is king of the church, and the head thereof (Ps. ii. 6; Eph. i. 21, 22; Isa. ix. 6; Mat. xxviii. 18.) He hath the government upon his shoulders, and hath all power given to him, both in heaven and earth.

2. A company of professed believers, ecclesiastically confederate, as they are a church before they have officers, and without them; so, even in that estate, subordinate church-power (Acts i. 23, and xiv. 23, and vi. 3, 4; Mat. xviii. 17; 1 Cor. v. 4, 5,) under Christ delegated to them by him, doth belong to them in such a manner as is before expressed, Chap. V. Sec. 2, and as flowing from the very nature and essence of a church; it being natural unto all bodies, and so unto a church-body, to be furnished with sufficient power for its own preservation and subsistence.

3. This government of the church (Rev. iii. 7; 1 Cor. v. 12,) is a mixt government (and so has been acknowledged, long before the term of *independency* was heard of); in respect of Christ, the head and king of the church, and the Sovereign Power residing in him, and exercised by him, it is a *monarchy;* in respect of the body or brotherhood of the church, and power from Christ granted unto them (1 Tim. v. 27,) it resembles a *democracy;* in respect of the presbytery and power committed unto them, it is an *aristocracy.*

4. The Sovereign Power, which is peculiar unto Christ, is exercised—1, In calling the church out of the world into an holy fellowship with himself. (Gal. i. 4; Rev. v. 8, 9; Mat. xxviii. 20; Eph. iv. 8. 11; Jam. iv. 12; Is. xxxiii. 22; 1 Tim. iii. 15; 2 Cor. x. 4, 5; Is. xxxii. 2; Luke i. 71.) 2, In instituting the ordinances of his worship, and appointing his ministers and officers for the dispensing of them. 3, In giving laws for the ordering of all our ways, and the ways of his house. 4, In giving power and life to all his institutions, and to his people by them. 5, In protecting and delivering his church against and from all the enemies of their peace.

5. The power granted by Christ unto the body of the church and brotherhood, is a *prerogative* or *priviledge* which the church doth exercise—1, In *choosing* their own officers, whether elders or deacons. (Acts vi. 3. 5. and xiv. 23, and

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ix. 26; Mat. xviii. 15, 16, 17.) 2, In *admission* of these members; and therefore there is great reason they should have power to remove any from their fellowship again. Hence, in case of offence, any brother hath power to convince and admonish an offending brother: and, in case of not hearing him, to take one or two more to set on the admonition: and in case of not hearing them, to proceed to tell the church: and as his offence may require, the whole church has power to proceed to the censure of him, whether by admonition or excommunication: (Tit. iii. 10; Col. iv. 17; Mat. xviii. 17; 2 Cor. ii. 7, 8,) and upon his repentance to restore him again unto his former communion.

6. In case an elder offend incorrigibly, the matter so requiring, as the church had power to call him to office, so they have power according to order (the counsel of other churches, where it may be had, directing thereto) to remove him from his office, and being now but a member, (Col. iv. 17; Ro. xvi. 17; Mat. xviii. 17,) in case he add contumacy to his sin, the church, that had power to receive him into their fellowship, hath also the same power to cast him out that they have concerning any other member.

7. Church-government or rule is placed by Christ in the officers of the church, (1 Tim. v. 17; Heb. xiii. 17; 1 Thes. v. 12,) who are therefore called *rulers,* while they rule with God: yet, in case of male-administration, they are subject to the power of the church, as hath been said before. (Rom. xii. 8; 1 Tim. v. 17; 1 Cor. xii. 28, 29; Heb. xiii. 7. 17.) The Holy Ghost frequently—yea, always—where it mentioneth church-rule and church government, ascribeth it to elders: whereas the work and duty of the people is expressed in the phrase of "obeying their elders," and "submitting themselves unto them in the Lord." So as it is manifest that an organick or compleat church is a body politick, consisting of some that are governours and some that are governed in the Lord.

8. The power which Christ hath committed to the elders is to feed and rule the church of God, and accordingly to call the church together upon any weighty occasion; (Acts xx. 28, and vi. 2; Numb. xvi. 12; Ezek. xlvi. 10; Acts xiii. 15; Hos. iv. 4,) when the members so called, without just cause, may not refuse to come, nor when they are come, depart before they are dismissed, nor speak in the church, before they have leave from the elders, nor continue so doing when they require silence; nor may they oppose or contradict the judgment or sentence of the elders, without sufficient and weighty cause, because such practices are manifestly contrary unto order and government, and inlets of disturbance, and tend to confusion.

9. It belongs also unto the elders before to examine any officers or members before they be received of the church, (Rev. ii. 2; 1 Tim. v. 19; Acts xxi. 18. 22, 23; 1 Cor. v. 4, 5,) to receive the accusations brought to the church, and to prepare them for the churches hearing. In handling of offences and other matters before the church, they have power to declare and publish the will of God touching the same, and to pronounce sentence with the consent of the church. (Numb. vi. 23 to 26.) Lastly, They have power, when they dismiss the people, to bless them in the name of the Lord.

10. This power of government in the elders doth not any wise prejudice the power of privilege in the brotherhood; as neither the power of privilege in the brethren, doth prejudice the power of government in the elders, (Acts xiv. 15. 23, and vi. 2; 1 Cor. v. 4; 2 Cor. ii. 6, 7,) but they may sweetly agree together; as we may see in the example of the apostles, furnished with the greatest church-power, who took in the *concurrence* and *consent* of the brethren in church-administrations. Also that Scripture (2 Cor. ii. 9, and x. 6) doth declare that what the churches were to *act* and to *do* in these matters, they were to do in a way of obedience, and that not only to the direction of the apostles, but also of their ordinary elders. (Heb. xiii. 17.)

11. From the promises, namely, that the ordinary power of government belonging only to the elders, power of privilege remaining with the brotherhood, (as the power of judgment in matters of censure and power of liberty in matters of liberty,) it followeth that in an organick church and right administration, all church-acts proceed after the manner of a mixt administration, so as no church-act can be consummated or perfected without the consent of both.

CHAPTER XI

Of the Maintenance of Church-Officers

1. The apostle concludes that necessary and sufficient maintenance is due unto the ministers of the word from the law of nature and nations, from the law of Moses, the equity thereof, as also the rule of common reason. Moreover, the Scripture doth not only call elders labourers and workmen, (Gal. vi. 6,) but also, speaking of them, doth say

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that "the labourer is worthy of his hire:" (1 Cor. ix. 9. 14; 1 Tim. v. 18,) and requires that he which is taught in the word, should communicate to him in all good things, and mention it, as an ordinance of the Lord, that they which preach the gospel, should live of the gospel, and forbiddeth the muzzling of the mouth of the ox that treadeth out the corn.

2. The Scriptures alledged requiring this maintenance as a bounden duty, and due debt, and not as a matter of alms and free gift, therefore people are not at liberty to do or not to do, what and when they please in this matter, no more than in any other commanded duty and ordinance of the Lord; (Rom. xv. 27; 1 Cor. ix. 21,) but ought of duty to minister of their "carnal things" to them that labour among them in word and doctrine, as well as they ought to pay any other workmen their wages, and to discharge and satisfie their debts, or to submit themselves to observe any other ordinance of the Lord.

3. The apostle (Gal. vi. 6) enjoyning that he which is taught communicate to him that teacheth "in all good things," doth not leave it arbitrary, (1 Cor. xvi. 2,) what or how much a man shall give, or in what proportion, but even the latter, as well as the former, is prescribed and appointed by the Lord.

4. Not only members of churches, but "all that are taught in the word," are to contribute unto him that teacheth in all good things. In case that congregations are defective in their contributions, the deacons are to call upon them to do their duty: (Acts vi. 3, 4,) if their call sufficeth not, the church by her power is to require it of their members; and where church power, thro' the corruption of men, doth not or cannot attain the end, the magistrate is to see that the ministry be duly provided for, as appears from the commended example of Nehemiah. (Neh. xiii. 11; Isa. xliv. 23; 2 Cor. viii. 13, 14.) The magistrates are nursing-fathers and nursing-mothers, and stand charged with the custody of both tables; because it is better to prevent a scandal, that it may not come, and easier also, than to remove it, when it is given. It's most suitable to rule, that by the church's care each man should know his proportion according to rule, what he should do before he do it, that so his judgment and heart may be satisfied in what he doth, and just offence prevented in what is done.

CHAPTER XII

Of the Admission of Members into the Church

1. The doors of the churches of Christ upon earth do not by God's appointment stand so wide open, that all sorts of people, good and bad, may freely enter therein at their pleasure, (2 Chr. xxix. 19; Mat. xiii. 25, and xxii. 12,) but such as are admitted thereto, as members, ought to be examin'd and tryed first, whether they be fit and meet to be received into church-society or not. The Eunuch of Ethiopia, before his admission, was examined by Philip, (Acts viii. 37,) whether he did believe on Jesus Christ with all his heart. The angel of the church at Ephesus (Rev. ii. 2; Acts ix. 26,) is commended for trying such as said they were apostles, and were not. There is like reason for trying of them that profess themselves to be believers. The officers are charged with the keeping of the doors of the church, and therefore are in a special manner to make tryal of the fitness of such who enter. Twelve angels are set at the gates of the temple, (Rev. xxi. 12; 2 Chr. xxiii. 19,) lest such as were "ceremonially unclean" should enter thereunto.

2. The things which are requisite to be found in all church-members, are *repentance* from sin, and *faith* in Jesus Christ: (Acts ii. 38 to 42, and viii. 37,) and therefore these are the things whereof men are to be examined at their admission into the church, and which then they must profess and hold forth in such sort as may satisfie "rational charity" that the things are indeed. John Baptist admitted men to baptism confessing and bewailing their sins: (Mat. iii. 6; Acts xix. 18,) and of others it is said that "they came and confessed, and shewed their deeds."

3. The weakest measure of faith is to be accepted in those that desire to be admitted into the church, (Rom. xiv. 1,) if *sincere,* have the substance of that faith, repentance and holiness, which is required in church members; and such have most need of the ordinances for their confirmation and growth in grace. The Lord Jesus would not quench the smoaking flax, nor break the bruised reed, (Mat. xii. 20; Isa. xl. 11,) but gather the tender lambs in his arms, and carry them gently in his bosom. Such charity and tenderness is to be used, as the weakest Christian, if sincere, may not be excluded nor discouraged. Severity of examination is to be avoided.

4. In case any, thro' excessive fear or other infirmity, be unable to make their personal relation of their spiritual

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estate in publick, it is sufficient that the elders, having received private satisfaction, make relation thereof in publick before the church, they testifying their assents thereunto: this being the way that tendeth most to edification. But whereas persons are of greater abilities, there it is most expedient that they make their relations and confessions personally with their own mouth, as David professeth of himself. (Psal. lxvi. 6.)

5. A personal and publick confession and declaring of God's manner of working upon the soul, is both lawful, expedient and useful, in sundry respects and upon sundry grounds. Those three thousand, (Acts ii. 37. 41,) before they were admitted by the apostles, did manifest that they were pricked at the heart by Peter's sermon, together with earnest desire to be delivered from their sins, which now wounded their consciences, and their ready receiving of the word of promise and exhortation. We are to be ready to "render a reason of the hope that is in us, to every one that asketh us;" (1 Pet. iii. 15; Heb. xi. 1; Eph. i. 18,) therefore we must be able and ready upon any occasion to declare and shew our *repentance* for sin, *faith* unfeigned, and *effectual calling,* because these are the *reason* of a well-grounded *hope.* "I have not hidden thy righteousness from the great congregation." (Psalm xl. 10.)

6. This profession of faith and repentance, as it must be made by such at their admission that were never in church society before; so nothing hindereth but the same way also be performed by such as have formerly been members of some other church, (Mat. iii. 5, 6; Gal. ii. 4; 1 Tim. v. 24,) and the church to which they now join themselves as members may lawfully require the same. Those three thousand (Acts ii.) which made their confession, were members of the church of the Jews before; so were those that were baptised by John. Churches may err in their admission; and persons regularly admitted may fall into offence. Otherwise, if churches might obtrude their members, or if church members might obtrude themselves upon other churches without due trial, the matter so requiring, both the liberty of the churches would thereby be infringed, in that they might not examine those, concerning whose fitness for communion they were unsatisfied; and besides the infringing of their liberty, the churches themselves would unavoidably be corrupted, and the ordinances defiled: whilst they might not refuse, but must receive the unworthy, which is contrary unto the Scripture, teaching that all churches are sisters, and therefore equal. (Cant. viii. 8.)

7. The like trial is to be required from such members of the church as were born in the same, or received their membership, or were baptised in their infancy or minority by virtue of the covenant of their parents, when being grown up into years of discretion, they shall desire to be made partakers of the Lord's Supper; unto which, because holy things must not be given unto the unworthy, therefore it is requisite (Mat. vii. 6; 1 Cor. xi. 27,) that these, as well as others, should come to their trial and examination, and manifest their faith and repentance by an open profession thereof, before they are received to the Lord's Supper, and otherwise not to be admitted thereunto. Yet these church members that were so born, or received in their childhood, before they are capable of being made partakers of full communion, have many priviledges which others (not church members) have not; they are in covenant with God, have the seal thereof upon them, viz: baptism; and so, if not regenerated, yet are in a more hopeful way of attaining regenerating grace, and all the spiritual blessings, both of the covenant and seal; they are also under church-watch, and consequently subject to the reprehensions, admonitions and censures thereof, for their healing and amendment, as need shall require.

CHAPTER XIII

Of Church-Members, Their Removal from One Church to Another, and of Recommendation and Dismission

1. Church-members may not remove or depart from the church, and so one from another as they please, nor without just and weighty cause, but ought to live and dwell together, (Heb. x. 25,) forasmuch as they are commanded not to forsake the assembling of themselves together. Such departure tends to the dissolution and ruine of the body, as the pulling of stones and pieces of timber from the building, and of members from the natural body, tend to the destruction of the whole.

2. It is, therefore, the duty of church-members, in such times and places, where counsel may be had, to consult with the church whereof they are members (Pro. xi. 16,) about their removal, that, accordingly, they having their approbation, may be encouraged, or otherwise desist. They who are joined with consent, should not depart without consent, except forced thereunto.

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3. If a member's departure be manifestly unsafe and sinful, the church may not consent thereunto; for in so doing, (Ro. xiv. 23,) they should not act in faith, and should partake with him in his sin. (1 Tim. v. 22.) If the case be doubtful and the person not to be persuaded, (Acts xxi. 14,) it seemeth best to leave the matter unto God, and not forcibly to detain him.

4. Just reasons for a member's removal of himself from the church, are—1, If a man cannot continue without partaking in sin. (Eph. v. 11.) 2, In case of personal persecution: (Acts ix. 25. 29, 30, and viii. 1,) so Paul departed from the disciples at Damascus; also, in case of general persecution, when all are scattered. In case of real, and not only pretended want of competent subsistence, a door being opened for better supply in another place, (Neh. xiii. 20,) together with the means of spiritual edification. In these or like cases, a member may lawfully remove, and the church cannot lawfully detain him.

5. To separate from a church, either out of contempt of their holy fellowship, (2 Tim. iv. 10,) or out of covetousness, or for greater enlargements, with just grief to the church, or out of schism, or want of love, and out of a spirit of contention in respect of some unkindness, or some evil only *conceived* or *indeed* in the church, which might and should be tolerated and healed with a spirit of meekness, and of which evil the church is not yet convinced (tho' perhaps himself be) nor admonished; for these or the like reasons, to withdraw from publique communion in word or seals, or censures, is unlawful and sinful.

6. Such members as have orderly moved their habitation, ought to join themselves unto the church in order (Isa. lvi. 8,) where they do inhabit, (Acts ix. 26,) if it may be; otherwise, they can neither perform the duties nor receive the priviledges of members. Such an example, tolerated in some, is apt to corrupt others, which, if many should follow, would threaten the dissolution and confusion of churches, contrary to the Scripture. (1 Cor. xiv. 33.)

7. Order requires that a member thus removing, have letters testimonial and of dismission from the church (Act. xviii. 27,) whereof he yet is, unto the church whereunto he desireth to be joined, lest the church should be deluded; that the church may receive him in faith, and not be corrupted in receiving deceivers and false brethren. Until the person dismissed be received unto another church, he ceaseth not by his letters of dismission to be a member of the church whereof he was. The church cannot make *a* member *no* member but by excommunication.

8. If a member be called to remove only for a time where a church is, (Rom. xvi. 1, 2,) letters of recommendation are requisite and sufficient for communion with that church (2 Cor. iii. 1) in the ordinances and in their watch; as Phoebe, a servant of the church at Cenchrea, had a letter written for her to the church at Rome, that she might be received as becometh saints.

9. Such letters of recommendation and dismission (Acts xviii. 27) were written for Apollos, for Marcus to the Colossians, (Col. iv. 10,) for Phoebe to the Romans, (Rom. xvi. 1,) for sundry other churches. (2 Cor. iii. 5.) And the apostle tells us that some persons, not sufficiently known otherwise, have special need of such letters, tho' he, for his part, had no need thereof. The use of them is to be a benefit and help to the party for whom they are written, and for the furthering of his receiving among the saints, in the place whereto he goeth, and the due satisfaction of them in their receiving of him.

CHAPTER XIV

Of Excommunication and Other Censures

1. The censures of the church are appointed by Christ for the preventing, removing and healing of offences in the church; (1 Tim. v. 20; Jude 19; Deu. xiii. 11: 1 Cor. v. 6; Rom. ii. 24; Rev. ii. 14, 15, 16. 20,) for the reclaiming and gaining of offending brethren; for the deterring others from the like offences; for purging out the leaven which may infect the whole lump; for vindicating the honour of Christ and of his church, and the holy profession of the gospel; and for preventing of the wrath of God, that may justly fall upon the church, if they should suffer his covenant and the seals thereof to be profaned by notorious and obstinate offenders.

2. If an offence be private, (Mat. v. 23, 24,) (one brother offending another) the offender is to go and acknowledge his repentance for it unto his offended brother, who is then to forgive him; but if the offender neglect or refuse to do it, the brother offended is to go, and convince and admonish him of it, between themselves privately: if therefore the offender be brought to repent of his offence, the admonisher has won his brother: but if the offender hear

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not his brother, the brother of the offended is to take with him one or two more, (verse 16,) that in the mouth of two or three witnesses every word may be established, (whether the word of admonition, if the offender receive it; or the word of complaint, if he refuse it,) for if he refuse it, (verse 17,) the offended brother is by the mouth of the elders to tell the church, and if he hear the church, and declare the same by penitent confession, he is recovered and gained: And if the church discern him to be willing to hear, yet not fully convinced of his offence, as in case of heresie, they are to dispence to him a publick admonition; which, declaring the offender to lye under the publick offence of the church, doth thereby with-hold or suspend him from the holy fellowship of the Lord's Supper, till his offence be removed by penitent confession. If he still continue obstinate, they are to cast him out by excommunication.

3. But if the offence be more publick at first, and of a more hainous and criminal nature, (1 Cor. v. 4. 8, 11,) to wit, such as are condemned by the light of nature; then the church, without such gradual proceeding, is to cast out the offender from their holy communion, for the further mortifying of his sin, and the healing of his soul in the day of the Lord Jesus.

4. In dealing with an offender, great care is to be taken that we be neither over-strict or rigorous, nor too indulgent or remiss: our proceeding herein ought to be with a spirit of meekness, considering ourselves, lest we also be tempted, (Gal. vi. 1,) and that the best of us have need of much forgiveness from the Lord. (Math. xviii. 34, 35.) Yet the winning and healing of the offender's soul being the end of these endeavours, (Ezek. xiii. 10,) we must not daub with untempered mortar, nor heal the wounds of our brethren slightly. On some, have compassion; others, save with fear.

5. While the offender remains excommunicate, (Mat. xviii. 17,) the church is to refrain from all member-like communion with him in spiritual things, (1 Cor. v. 11,) and also from all familiar communion with him in civil things, (2 Thes. iii. 6. 14,) farther than the necessity of natural or domestical or civil relations do require; and are therefore to forbear to eat and drink with him, that he may be ashamed.

6. Excommunication being a spiritual punishment, it doth not prejudice the excommunicate in, or deprive him of his civil rights, and therefore toucheth not princes or magistrates in respect of their civil dignity or authority; (1 Cor. xiv. 24, 25,) and the excommunicate being but as a publican and a heathen, (2 Thes. iii. 14,) heathens being lawfully permitted to hear the *word* in church-assemblies, we acknowledge therefore the like liberty of hearing the word may be permitted to persons excommunicate that is permitted unto heathen. And because we are not without hope of his recovery, we are not to account him as an enemy, but to admonish him as a brother.

7. If the Lord sanctifie the censure to the offender, so as by the grace of Christ, he doth testifie his repentance with humble confession of his sin, and judging of himself, giving glory unto God, (2 Cor. ii. 7, 8,) the church is then to forgive him, and to comfort him, and to restore him to the wonted brotherly communion, which formerly he enjoyed with 'em.

8. The suffering of prophane or scandalous livers to continue in fellowship, and partake in the sacraments, (Rev. ii. 14, 15. 20,) is doubtless a great sin in those that have power in their hands to redress it, and do it not: Nevertheless, in so much as Christ, and his apostles in their times, and the prophets and other *godly men* in theirs, (Mat. xxiii. 3; Acts iii. 1,) did lawfully partake of the Lord's commanded ordinances in the Jewish church, and neither taught nor practised separation from the same, though unworthy ones were permitted therein: and inasmuch as the faithful in the church of Corinth, wherein were many unworthy persons and practises, (1 Cor. vi. and xv. 12,) are never commanded to absent themselves from the sacraments, because of the same; therefore the godly, in like cases, are not to separate.

9. As separation from such a church wherein profane and scandalous persons are tolerated, is not presently necessary; so for the members thereof, otherwise unworthy, hereupon to abstain from communicating with such a church in the participation of the sacraments, is unlawful. (2 Chr. xxx. 18; Gen. xviii. 25.) For as it were unreasonable for an innocent person to be punished for the faults of others, wherein he hath no hand, and whereunto he gave no consent; so is it more unreasonable that a godly man should neglect duty, and punish himself, in not coming for his portion in the blessing of the seals, as he ought, because others are suffered to come that ought not; especially considering that himself doth neither consent to their sin, nor to their approaching to the ordinance in their sin, nor to the neglect of others, who should put them away, and do

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not, but, on the contrary, doth heartily mourn for these things, (Ezek. ix. 4,) modestly and seasonably stir up others to do their duty. If the church cannot be reformed, they may use their liberty, as is specified, Chap. XIII. Sect. 4. But this all the godly are bound unto, even every one to his endeavour, according to his power and place, that the unworthy may be duly proceeded against by the church, to whom this matter doth pertain.

CHAPTER XV

Of the Communion of Churches One with Another

1. Altho' *churches* be distinct, and therefore may not be confounded one with another, and equal, and therefore have not dominion one over another; (Rev. i. 4; Cant. viii. 8; Rom. xvi. 16; 1 Cor. xvi. 19; Acts xv. 23; Rev. ii. 1,) yet all the churches ought to preserve *church-communion* one with another, because they are all united unto Christ, not only as a mystical, but as a political head: whence is derived a communion suitable thereunto.

2. The communion of churches is exercised several ways. (Cant. viii. 8.) 1, By way of *mutual care* in taking thought for one another's welfare. 2, By way of *consultation* one with another, when we have occasion to require the judgment and counsel of other churches, touching any person or cause, wherewith they may be better acquainted than our selves; (Acts xv. 2,) as the church of Antioch consulted with the Apostles and elders of the church at Jerusalem, about the question of circumcision of the Gentiles, and about the false teachers that broached that doctrine. In which case, when any church wanteth light or peace among themselves, it is a way of communion of the churches, according to the word, to meet together by their elders and other messengers in a synod, (ver. 22, 23,) to consider and argue the point in doubt or difference; and, having found out the way of truth and peace, to commend the same by their letters and messengers to the churches whom the same may concern. But if a church be rent with divisions among themselves, or lye under any open scandal, and yet refuse to consult with other churches for healing or removing of the same, it is matter of just offence, both to the Lord Jesus and to other churches, (Ezek. xxxiv. 4,) as bewraying too much want of mercy and faithfulness, not to seek to bind up the breaches and wounds of the church and brethren; And therefore the state of such a church calleth aloud upon other churches to exercise a fuller act of brotherly communion, to wit, by way of admonition. 3, A way, then, of communion of churches, is by way of *admonition;* to wit, in case any public offence be found in a church, which they either discern not, or are slow in proceeding to use the means for the removing and healing of. Paul had no authority over Peter, yet when he saw Peter not walking with a right foot, he publickly rebuked him before the church. (Gal. ii. 11 to 14.) Tho' churches have no more authority one over another, than one apostle had over another, yet, as one apostle might admonish another, so may one church admonish another, and yet without usurpation. (Matth. xviii. 15, 16, 17, by proportion.) In which case, if the church that lieth under offence, do not hearken to the church that doth admonish her, the church is to acquaint other neighbour churches with that offence, which the offending church still lieth under, together with the neglect of their brotherly admonition given unto them: Whereupon those other churches are to join in seconding the admonition formerly given: and if still the offending church continue in obstinacy and impenitency, they may forbear communion with them, and are to proceed to make use of the help of a synod or counsel of neighbour churches, walking orderly (if a greater cannot conveniently be had) for their conviction. If they hear not the synod, the synod having declared them to be obstinate, particular churches accepting and approving of the judgment of the synod, are to declare the sentence of *non-communion* respectively concerning them; and thereupon, out of religious care to keep their own communion pure, they may justly withdraw themselves from participation with them at the Lord's table, and from such other acts of holy communion, as the communion of churches doth otherwise allow and require. Nevertheless, if any members of such a church as live under public offence, do not consent to the offence of the church, but do in due sort bear witness against it, (Gen. xviii. 25,) they are still to be received to wonted communion, for it is not equal that the innocent should suffer with the offensive. Yea, furthermore, if such innocent members, after due waiting in the use of all due means for the healing of the offence of their own church, shall at last (with the allowance of the counsel of neighbour churches,) withdraw from the fellowship of their own church, and offer themselves to the fellowship of another, we judge it lawful for the other church to receive them (being otherwise fit) as if they had been orderly dismissed to them from their

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own church. 4, A fourth way of communion with churches, is by way of *participation:* the members of one church occasionally coming to another, we willingly admit them to partake with them at the Lord's table, (1 Cor. xii. 13,) it being the seal of our communion not only with Christ, not only with the members of our own church, but also of all the churches of the saints: In which regard we refuse not to baptize their children presented to us, if either their own minister be absent, or such a fruit of holy fellowship be desired with us. In like cases, such churches as are furnished with more ministers than one, do willingly afford one of their own ministers to supply the absence or place of a sick minister of another church for a needful season. 5, A fifth way of church communion is by *recommendation,* (Rom. xvi. 1,) when the member of one church hath occasion to reside in another church, if but for a season, we commend him to their watchful fellowship by letters of recommendation: But if he be called to settle his abode there, we commit him, according to his desire, to the fellowship of their covenant by letters of dismission. 6, A sixth way of church communion, (Acts xviii. 27,) is in case of *need* to minister succour one unto another, (Acts xi. 22,) either of able members to furnish them with officers, or of outward support to the necessities of poorer churches, (verse 29,) as did the churches of the Gentiles contribute liberally to the poor saints at Jerusalem. (Rom. xiii. 26, 27.)

3. When a company of believers purpose to gather into church-fellowship, it is requisite for their safer proceeding and the mentioning of the communion of churches, that they signifie their intent unto the neighbouring churches, walking according to the order of the gospel, and desire their presence and help, and right hand of fellowship; (Gal. ii. 1, 2, and ix., by proportion,) which they ought readily to give unto them, when there is no just cause to except against their proceedings.

4. Besides these several ways of communion, there is also a way of *propagation of churches:* When a church shall grow too numerous, it is a way, and fit season to propagate one church out of another, by sending forth such of their members as are willing to remove, and to procure some officers to them, (Isa. xl. 20; Cant. viii. 8, 9,) as may enter with them into church estate among themselves. As bees, when the hive is too full, issue out by swarms, and are gathered into other hives, so the churches of Christ may do the same upon the like necessity; and therein hold forth to them the right hand of fellowship, both in their gathering into a church and in the ordination of their officers.

CHAPTER XVI

Of Synods

1. Synods, orderly assembled, (Acts xv. 2 to 15,) and rightly proceeding according to the pattern, (Acts xv.) we acknowledge as the ordinance of Christ: and tho' not absolutely necessary to the being, yet many times, thro' the iniquity of men and perverseness of times, necessary to the well-being of churches, for the establishment of truth and peace therein.

2. Synods being spiritual and ecclesiastical assemblies, are therefore made up of spiritual and ecclesiastical causes. The next efficient cause of them, under Christ, is the power of the churches sending forth their elders and other messengers, (Acts xv. 2, 3,) who being met together in the name of Christ, are the matter of a synod; and they in arguing and debating and determining matters of religion, (verse 6,) according to the word, and publishing the same to the churches it concerneth, (verse 7 to 23,) do put forth the proper and formal acts of a synod, (verse 31,) to the conviction of errors, and heresies, and the establishment of truth and peace in the churches, which is the end of a synod. (Acts xvi. 4. 15.)

3. Magistrates have power to call a synod, by calling to the churches to send forth their elders and other messengers to counsel and assist them in matters of religion; (2 Chr. xxix. 4, 5 to 11,) but yet the constituting of a synod is a church-act, and may be transacted by the churches, (Acts xv.) even when civil magistrates may be enemies to churches and to church-assemblies.

4. It belongeth unto synods and councils to debate and determine controversies of faith and cases of conscience; (Acts xv. 1, 2. 6, 7; 1 Chr. xv. 13; 2 Chr. xxix. 6, 7; Acts xv. 24. 28, 29,) to clear from the word holy directions for the holy worship of God and good government of the church; to bear witness against mal-administration and corruption in doctrine or manners, in any particular church; and to give directions for the reformation thereof; not to exercise church-censures in way of discipline, nor any other act of church-authority or jurisdiction which that presidential synod did forbear.

5. The synod's directions and determinations, so far as

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consonant to the word of God, are to be received with reverence and submission; not only for their agreement therewith, (Acts xv.) (which is the principal ground thereof, and without which they bind not at all,) but also, secondarily, for the power whereby they are made, as being an ordinance of God appointed thereunto in his word.

6. Because it is difficult, if not impossible, for many churches to come together in one place, in their members universally; therefore they may assemble by their delegates or messengers, as the church at Antioch went not all to Jerusalem, but some select men for that purpose. (Acts xv. 2.) Because none are or should be more fit to know the state of the churches, nor to advise of ways for the good thereof, than elders; therefore it is fit that, in the choice of the messengers for such assemblies, they have special respect unto such; yet, inasmuch as not only Paul and Barnabas, but certain others also, (Acts xv. 2. 22, 23,) were sent to Jerusalem from Antioch, (Acts xv.) and when they were come to Jerusalem, not only the apostles and elders, but other bretheren, also do assemble and meet about the matter; therefore synods are to consist both of elders and other church-members, endued with gifts, and sent by the churches, not excluding the presence of any bretheren in the churches.

CHAPTER XVII

Of the Civil Magistrate's Power in Matters Ecclesiastical

1. It is lawful, profitable and necessary for Christians to gather themselves together into church estate, and therein to exercise all the ordinances of Christ, according unto the word, (Acts ii. 41. 47, and iv. 1, 2, 3,) although the consent of the magistrate could not be had thereunto; because the apostles and Christians in their time did frequently thus practise, when the magistrates, being all of them Jewish and Pagan, and most persecuting enemies, would give no countenance or consent to such matters.

2. Church-government stands in no opposition to civil government of commonwealths, nor any way intrencheth upon the authority of civil magistrates in their jurisdictions; nor any whit weakeneth their hands in governing, but rather strengtheneth them, and furthereth the people in yielding more hearty and conscionable obedience to them, whatsoever some ill affected persons to the ways of Christ have suggested, to alienate the affections of kings and princes from the ordinances of Christ; as if the kingdom of Christ in his church could not rise and stand, without the falling and weakening of their government, which is also of Christ, (Isa. xlix. 23,) whereas the contrary is most true, that they may both stand together and flourish, the one being helpful unto the other, in their distinct and due administrations.

3. The power and authority of magistrates is not for the restraining of churches (Rom. xiii. 4; 1 Tim. ii. 2,) or any other good works, but for helping in and furthering thereof; and therefore the consent and countenance of magistrates, when it may be had, is not to be slighted, or lightly esteemed; but, on the contrary, it is part of that honor due to Christian magistrates to desire and crave their consent and approbation therein; which being obtained, the churches may then proceed in their way with much more encouragement and comfort.

4. It is not in the power of magistrates to compel their subjects to become church-members, and to partake of the Lord's Supper; (Ezek. xliv. 7. 9,) for the priests are reproved that brought unworthy ones into the sanctuary: (1 Cor. v. 11;) then it was unlawful for the priests, so it is as unlawful to be done by civil magistrates; those whom the church is to cast out, if they were in, the magistrate ought not to thrust them into the church, nor to hold them therein.

5. As it is unlawful for church-officers to meddle with the sword of the magistrate, (Mat. ii. 25, 26,) so it is unlawful for the magistrate to meddle with the work proper to church-officers. The acts of Moses and David, who were not only princes but prophets, were extraordinary, therefore not inimitable. Against such usurpation the Lord witnessed by smiting Uzziah with leprosie for presuming to offer incense. (2 Chr. xxvi. 16, 17.)

6. It is the duty of the magistrate to take care of matters of religion, and to improve his civil authority for the observing of the duties commanded in the first, as well as for observing of the duties commanded in the second table. They are called *gods.* (Psa. lxxxviii. 8.) The end of the magistrate's office is not only the quiet and peaceable life of the subject in matters of righteousness and honesty, but also in matters of godliness; yea, of all godliness. (1 Tim. ii. 1, 2; 1 Kings xv. 14, and xxii. 43; 2 Kings xii. 3, and xiv. 4, and xv. 35.) Moses, Joshua, David, Solomon, Asa, Jehoshaphat, Hezekiah, Josiah, are much commended by the Holy Ghost, for the putting forth their authority in matters of

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religion; on the contrary, such kings as have been failing this way, are frequently taxed and reproved of the Lord. (1 Kings xx. 42; Job xxix. 25, and xxxi. 26. 28; Neh. xiii.; Jonah iii. 7; Ezra vii.; Dan. iii. 29.) And not only the kings of Juda, but also Job, Nehemiah, the king of Nineveh, Darius, Artaxerxes, Nebuchadnezzar, whom none looked at as types of Christ, (tho' were it so there were no place for any just objection) are commended in the books of God for exercising their authority this way.

7. The objects of the power of the magistrate are not things meerly inward, and so not subject to his cognizance and views: as unbelief, hardness of heart, erroneous opinions not vented, but only such things as are acted by the outward man: neither their power to be exercised in commanding such acts of the outward man, and punishing the neglect thereof, as are but meer inventions and devices of men, (1 Kings xx. 28. 42,) but about such acts as are commanded and forbidden in the word: yea, such as the word doth clearly determine, tho' not always clearly to the judgment of the magistrate or others, yet clearly in its self. In these he, of right, ought to put forth his authority, tho' oftimes actually he doth it not.

8. Idolatry, blasphemy, heresie, (Deut. xiii.; 1 Kings xx. 28. 42,) venting corrupt and pernicious opinions, that destroy the foundation, (Dan. iii. 29,) open contempt of the word preached, (Zech. xiii. 3,) prophanation of the Lord's-Day, (Neh. xiii. 31,) disturbing the peaceable administration and exercise of the worship and holy things of God, (1 Tim. ii. 2,) and the like, (Rom. xiii. 4,) are to be restrained and punished by civil authority.

9. If any church, one or more, shall grow schismatical, rending itself from the communion of other churches, or shall walk incorrigibly and obstinately in any corrupt way of their own, contrary to the rule of the word; in such case, the magistrate (Josh. xxii.) is to put forth his coercive power, as the matter shall require. The tribes on this side Jordan intended to make war against the other tribes for building the altar of witness, whom they suspected to have turned away therein from following of the Lord.

FINIS

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Providence Agreement

August 20, 1637

Maryland Act for Church Liberties

1638

Pennsylvania Act for Freedom of Conscience

December 7, 1682

Providence Agreement

Banished from Salem, Massachusetts, for his democratic views of church government, Roger Williams went to Rhode Island to found its earliest settlement at Providence. One of the first political compacts, the Providence Agreement also contains the first expression of the separation of church and state in America, binding members to obey only political authorities, and then only in regard to civil matters.

We whose names are hereunder, desirous to inhabit in the town of Providence, do promise to subject ourselves in active and passive obedience to all such orders or agreements as shall be made for the public good of the body in an orderly way, by the major consent of present inhabitants, masters of families, incorporated together in a Towne fellowship, and others whom they shall admit unto them only in civil things.

Maryland Act for Church Liberties

Maryland took a road toward religious toleration very different from Williams's. Lord Calvert, the colony's proprietor (and as such endowed with powers from the king to rule largely as he saw fit, subject to the king's wishes), was Catholic. Thus, colonists in Maryland, despite their representation in an assembly, and whatever their personal beliefs, had little power by which to oppose toleration specifically aimed at protecting Catholics. Nonetheless, Catholic rights would suffer periodic reversals in Maryland, which had a Protestant majority throughout most of its colonial existence.

Be it enacted by the Lord Proprietarie of this Province by and with the Advice and approbation of the ffreemen of the same that Holy Church within this Province shall have all her rights liberties and immunities safe whole and inviolable in all things. This act to continue till the end of the next Generall Assembly and then with the Consent of the Lord Proprietarie to be perpetuall.

Pennsylvania Act for Freedom of Conscience

Pennsylvania's proprietor, William Penn, held an expansive view of religious toleration, extending it to all who professed belief in a deity. However, Penn shared the common view that liberty, order, and justice depend upon virtue, which itself rests on Christian piety. Thus, his grant of religious liberties distinguishes between toleration for non-Christians and rights of political participation, which are reserved for Christians, and, further, continues traditional laws respecting Sabbath-keeping and punishment for sacrilegious speech and conduct.

Wheras the glory of almighty God and the good of mankind is the reason and end of government and, therefore, government in itself is a venerable ordinance of God. And forasmuch as it is principally desired and intended by the Proprietary and Governor and the freemen of the province of Pennsylvania and territories thereunto belonging to

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make and establish such laws as shall best preserve true christian and civil liberty in opposition to all unchristian, licentious, and unjust practices, whereby God may have his due, Caesar his due, and the people their due, from tyranny and oppression on the one side and insolence and licentiousness on the other, so that the best and firmest foundation may be laid for the present and future happiness of both the Governor and people of the province and territories aforesaid and their posterity.

Be it, therefore, enacted by William Penn, Proprietary and Governor, by and with the advice and consent of the deputies of the freemen of this province and counties aforesaid in assembly met and by the authority of the same, that these following chapters and paragraphs shall be the laws of Pennsylvania and the territories thereof.

Chap. I. Almighty God, being only Lord of conscience, father of lights and spirits, and the author as well as object of all divine knowledge, faith, and worship, who can only enlighten the mind and persuade and convince the understandings of people. In due reverence to his sovereignty over the souls of mankind;

Be it enacted, by the authority aforesaid, that no person now or at any time hereafter living in this province, who shall confess and acknowledge one almighty God to be the creator, upholder, and ruler of the world, and who professes him or herself obliged in conscience to live peaceably and quietly under the civil government, shall in any case be molested or prejudiced for his or her conscientious persuasion or practice. Nor shall he or she at any time be compelled to frequent or maintain any religious worship, place, or ministry whatever contrary to his or her mind, but shall freely and fully enjoy his, or her, christian liberty in that respect, without any interruption or reflection. And if any person shall abuse or deride any other for his or her different persuasion and practice in matters of religion, such person shall be looked upon as a disturber of the peace and be punished accordingly.

But to the end that looseness, irreligion, and atheism may not creep in under pretense of conscience in this province, be it further enacted, by the authority aforesaid, that, according to the example of the primitive Christians and for the ease of the creation, every first day of the week, called the Lord's day, people shall abstain from their usual and common toil and labor that, whether masters, parents, children, or servants, they may the better dispose themselves to read the scriptures of truth at home or frequent such meetings of religious worship abroad as may best suit their respective persuasions.

Chap. II. And be it further enacted by, etc., that all officers and persons commissioned and employed in the service of the government in this province and all members and deputies elected to serve in the Assembly thereof and all that have a right to elect such deputies shall be such as profess and declare they believe in Jesus Christ to be the son of God, the savior of the world, and that are not convicted of ill-fame or unsober and dishonest conversation and that are of twenty-one years of age at least.

Chap. III. And be it further enacted, etc., that whosoever shall swear in their common conversation by the name of God or Christ or Jesus, being legally convicted thereof, shall pay, for every such offense, five shillings or suffer five days imprisonment in the house of correction at hard labor to the behoof of the public and be fed with bread and water only during that time.

Chap. V. And be it further enacted, etc., for the better prevention of corrupt communication, that whosoever shall speak loosely and profanely of almighty God, Christ Jesus, the Holy Spirit, or the scriptures of truth, and is legally convicted thereof, shall pay, for every such offense, five shillings or suffer five days imprisonment in the house of correction at hard labor to the behoof of the public and be fed with bread and water only during that time,

Chap. VI. And be it further enacted, etc., that whosoever shall, in their conversation, at any time curse himself or any other and is legally convicted thereof shall pay for every such offense five shillings or suffer five days imprisonment as aforesaid.

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Worcestriensis

1776

The anonymous author of *Worcestriensis* ("From Worcester") addressed himself to the legislature of Massachusetts in the midst of the War for Independence. This was also a time during which citizens of the new state of Massachusetts were making modifications in their form of government. *Worcestriensis* stresses the need for the government officially to tolerate dissenting religious views in order to keep peace among denominations, prevent hypocrisy, and encourage wide-ranging or "catholic" inquiry into religious truths. But *Worcestriensis* also stresses the need for government to support religious teaching and practice so that the people will learn the virtues they need in order to maintain peace and support free government.

Worcestriensis

Number IV

To the Hon. Legislature of the State of Massachusetts-Bay

The subject of this disquisition (begun in my last) which is humbly offered to your consideration, is the promotion and establishment of religion in the State. In the course of the reasoning, it was suggested that a toleration of all religious principles (in other words, of all professions, modes & forms of worship) which do not sap the foundation of good government, is consistent with equity and the soundest policy. To establish this, as well as the general doctrine is my present design.

We live in [an] age of the world, in which the knowledge of the arts and sciences, calm and dispassionate enquiries and sound reasoning have been carried to surprising lengths, much to the honor of mankind. The rights of men and things, as well in an intellectual as a civil view, have by able writers, friends of human nature, been ascertained with great degrees of precision. Therefore it now becomes us in all our words and action to do nothing ungenerous, nothing unworthy the dignity of our *rational nature.*

In a well regulated state, it will be the business of the Legislature to prevent sectaries of different denominations from molesting and disturbing each other; to ordain that no part of the community shall be permitted to perplex and harrass the other for any supposed heresy, but that each individual shall be allowed to have and enjoy, profess and maintain his own system of religion, provided it does not issue in *overt acts* of treason against the state undermining the peace and good order of society.

To allow one part of a society to lord it over the faith and consciences of the other, in religious matters is the ready way to set the whole community together by the ears. It is laying a foundation for persecution in the abstract; for (as the judicious MONTESQUIEU observes) "it is a principle that every religion which is persecuted, becomes itself persecuting; for as soon as by some accidental turn it arises from persecution, it attacks the religion that persecuted it; not as a religion but as a tyranny."

It is necessary then that the laws require from the several religions, not only that they shall not embroil the State, but that they shall not raise disturbances among themselves. A citizen does not fulfill the laws by not disturbing the government; it is requisite that he should not trouble any citizen whomever.

Compulsion, instead of making men religious, generally has a contrary tendency, it works not conviction, but most naturally leads them into hypocrisy. If they are honest enquirers after truth; if their articles of belief differ from the creed of their *civil* superiors, compulsion will bring them into a sad *dilemma.* If they are conformists to what they do not believe, great uneasiness of mind must continuously perplex them. If they stand out and persist in nonconformity, they subject themselves to pains and penalties. There is further this ill consequence resulting from the establishment of religious dominion, viz. That an endeavor to suppress nonconformists, will increase, rather than diminish their number: For, however strange it may appear, yet indubitable facts prove that mankind [is] naturally compassionate [toward] those who are subjected to pains and hardships for the sake of their religion, and very frequently join with them and espouse their cause, raise sedition and faction, and endanger the public peace.

Whoever will read the history of Germany (not to men-

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tion the mother of harlots) will find this exemplified, in a manner and degree sufficient to shock any one who is not destitute of every spark of humanity. Calvinists and remonstrants made the religious divisions of the people: sometimes one party then the other was superior in their bloody disputes.

The fire first began among and between the congregations of different persuasions (calvinistic and arminian) the women and children came to blows and women pulled each others caps and hair as they passed and repassed the streets after (what they called divine) service was over in the several congregations, and the children gave each other bloody noses. This brought on civil dissention and altercation, until at length, rivers of blood in quarrels about things entirely immaterial and useless, relative either to this world or the other were shed; the nearest kindred embrued their hands in each others blood, subjects withdrew their allegiance and tumbled their rulers from their seats.

This is a true representation of facts, and is sufficient to deter any legislature from enacting laws requiring conformity to any particular mode or profession of religion, under pains of persecution in case of refusal.

This is not suggested because a *persecuting spirit* has of late years been conspicuous among the inhabitants of this state. On the contrary, a candid, catholic, and benevolent disposition has increased and prevailed. The principle reason why this is exhibited is, that as the GOOD PEOPLE of this and its sister states had just cause to alter and amend their civil constitution, so also, it is probable, the legislature of this State will take into consideration the eclesiastical discipline and government, and make such alterations and amendments in the constitution of the churches, as by them, in their wisdom shall be thought proper. We would therefore guard against everything that might be construed to have the least colour of a persecuting tendency, that so the law, relative to religion, may be the most candid, catholic and rational, that the nature of human society will admit of.

Perhaps some sticklers for establishments, requiring conformity to the prevailing religion, may now enquire whether, upon the principles above laid down, any legal establishment at all can take place? and if any, what? In answer to such querists, I would say that if by an establishment they intend the enacting and ordaining laws obliging dissenters from any certain religion to conform thereto, and, in case of nonconformity, subjecting them to pains, penalties and disabilities, in this sense there can and ought to be none. The establishment contended for in this disquisition, is of a different kind, and must result from a different legal Procedure.

It must proceed only from the benign frames of the legislature from an encouragement of the GENERAL PRINCIPLES of religion and morality, recommending free inquiry and examination of the doctrines said to be divine; using all possible and lawful means to enable its subjects to discover the truth, and to entertain good and rational sentiments, and taking mild and parental measures to bring about the design; these are the most probable means to bring about that establishment of religion which is recommended, and a settlement on an immoveable BASIS. It is lawful for the directors of a state to give preference to that profession of religion which they take to be true, and they have right to inflict penalties on those who notoriously violate the laws of natural religion, and thereby disturb the public peace. The openly profane come within their penal jurisdiction. There is no stronger cement of society than a sacred regard to OATHS; nothing binds stronger to the observation of the laws, therefore the public safety, and the *honor* of the SUPREME BEING require that public *profaneness,* should bring down the public vengeance upon those who dare hurl profanities at the throne of OMNIPOTENCE, and thereby *lessen* the reverence of the people for oaths, and solemn appeals to almighty God, and so shaking the foundation of good order and security in society. The same may be said of all Profaneness, and also of debauchery, which strike a fatal blow at the root of good regulation, and the well-being of the state.

And now with regard to the positive interposition of civil magistracy in behalf of religion, I would say, that what has been above suggested with respect to *toleration,* will not disprove the right of the legislature to exert themselves in favor of one religious profession rather than another, they have a right of private judgment as well as others, and are BOUND to do their *utmost* to propagate *that* which they esteem to be true. This they are to do by providing *able* and *learned* TEACHERS, to instruct the people in the knowledge of what they deem the truth, maintaining them by the public money, though at the same time they have no right in the least degree to endeavor the depression of professions of any religious denomination. Nor let it be said (in order to a perfect toleration) that all religious denominations have an equal right to public countenance, for this

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would be an evident infringement on the right of private judgment in the members of the legislature.

If the greatest part of the people, coincide with the public authority of the State in giving the prefference to any one religious system and creed, the dissenting few, though they cannot conscientiously conform to the prevailing religion, yet ought to acquiesce and rest satisfied that their religious Liberty is not *diminished.*

This suggestion starts a question, which has caused much debate among persons of different religious sentiments, viz. Whether a minor part of a parish or other corporation, are, or can be consistently obliged to contribute to the maintenance and support of a minister to them disagreeable, who is approved by the majority.

This is answered by a very able writer in the following manner, viz. "that this will stand upon the same footing with their contributing towards the expence of a war, which they think not necessary or prudent. If no such power were admitted, covetousness would drive many into dissenting parties in order to save their money.

So that none can reasonably blame a government for requiring such a *general Contribution,* and in this case it seems fit it should be yielded to, as the determination of those to whose guardianship the minority have committed themselves and their possessions.

We hope and trust that you, Hon. directors of this State, will exert yourselves in the cultivation and promotion of pure and RATIONAL RELIGION among your constituents. If there were no arguments to be drawn from the consideration of a *future* world, yet those drawn from the great influence of religion upon the LAWS and the *observance* of them, must, and ought to prevail."

I would add, that our Legislature of the last year have declared that "a Government so popular can be supported only by universal Knowledge and VIRTUE, in the body of the people."

In addition to this, I shall produce the opinion of the above cited *Montesquieu* (a great *authority!*) and so conclude this number.

"Religion may support a state, when the laws themselves are incapable of doing it.

"Thus when a kingdom is frequently agitated by civil wars, religion may do much by obliging one part of the state to remain always quiet.

"A prince who loves and fears religion, is a lion, who stoops to the hand that strokes or to the voice that appeases him. He who fears and hates religion, is like the savage beast, that growls and bites the chain which prevents his flying on the passenger. He who has no religion at all, is that terrible animal; who perceives his liberty only when he tears in pieces, and when he devours."

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Thanksgiving Proclamation and Letters to Religious Associations

GEORGE WASHINGTON

Thanksgiving Proclamation

October 3, 1789

Letter to the United Baptist Churches in Virginia

May 10, 1789

Letter to the Roman Catholics in the United States of America

March 15, 1790

Letter to the Hebrew Congregation in Newport

August 1790

Thanksgiving Proclamation

It was common practice in America, both before and after the Revolution, for political leaders to call for days of thanksgiving, as well as days of fasting and prayer, to mark great events and significant tragedies affecting the American republic. Here, Washington proclaims a Day of Thanksgiving, calling on Americans to acknowledge God's role in bringing them through the Revolution to the founding of their free government.

Whereas it is the duty of all Nations to acknowledge the providence of Almighty God, to obey his will, to be grateful for his benefits, and humbly to implore his protection and favor, and Whereas both Houses of Congress have by their joint Committee requested me "to recommend to the People of the United States a day of public thanks-giving and prayer to be observed by acknowledging with grateful hearts the many signal favors of Almighty God, especially by affording them an opportunity peaceably to establish a form of government for their safety and happiness."

Now therefore I do recommend and assign Thursday the 26th. day of November next to be devoted by the People of these States to the service of that great and glorious Being, who is the beneficent Author of all the good that was, that is, or that will be. That we may then all unite in rendering unto him our sincere and humble thanks, for his kind care and protection of the People of this country previous to their becoming a Nation, for the signal and manifold mercies, and the favorable interpositions of his providence, which we experienced in the course and conclusion of the late war, for the great degree of tranquillity, union, and plenty, which we have since enjoyed, for the peaceable and rational manner in which we have been enabled to establish constitutions of government for our safety and happiness, and particularly the national One now lately instituted, for the civil and religious liberty with which we are blessed, and the means we have of acquiring and diffusing useful knowledge and in general for all the great and various favors which he hath been pleased to confer upon us.

And also that we may then unite in most humbly offering our prayers and supplications to the great Lord and Ruler of Nations and beseech him to pardon our national and other transgressions, to enable us all, whether in public or private stations, to perform our several and relative duties properly and punctually, to render our national government a blessing to all the People, by constantly being a government of wise, just and constitutional laws, discreetly and faithfully executed and obeyed, to protect and guide all Sovereigns and Nations (especially such as have shown kindness unto us) and to bless them with good government, peace, and concord. To promote the knowledge and practice of true religion and virtue, and the encrease of sci-

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ence among them and Us, and generally to grant unto all Mankind such a degree of temporal prosperity as he alone knows to be best.

Letters to Religious Associations

In his replies to letters from various religious organizations representing minority faiths in America, Washington consistently maintains that those who hold dissenting religious views ought to be left alone to practice their beliefs and accorded decent respect in public, provided they conduct themselves as good citizens and supporters of the American republic.

To the United Baptist Churches in Virginia

Gentlemen:

I request that you will accept my best acknowledgements for your congratulation on my appointment to the first office in the nation. The kind manner in which you mention my past conduct equally claims the expression of my gratitude.

After we had, by the smiles of Heaven on our exertions, obtained the object for which we contended, I retired at the conclusion of the war, with an idea that my country would have no farther occasion for my services, and with the intention of never entering again into public life. But when the exigence of my country seemed to require me once more to engage in public affairs, an honest conviction of duty superseded my former resolution, and became my apology for deviating from the happy plan which I had adopted.

If I could have entertained the slightest apprehension that the Constitution framed in the Convention, where I had the honor to preside, might possibly endanger the religious rights of any ecclesiastical society, certainly I would never have placed my signature to it; and if I could now conceive that the general government might ever be so administered as to render the liberty of conscience insecure, I beg you will be persuaded that no one would be more zealous than myself to establish effectual barriers against the horrors of spiritual tyranny, and every species of religious persecution. For you, doubtless, remember that I have often expressed my sentiment, that every man, conducting himself as a good citizen, and being accountable to God alone for his religious opinions, ought to be protected in worshipping the Deity according to the dictates of his own conscience.

While I recollect with satisfaction that the religious society of which you are members, have been, throughout America, uniformly, and almost unanimously, the firm friends to civil liberty, and the persevering promoters of our glorious revolution; I cannot hesitate to believe that they will be the faithful supporters of a free, yet efficient general government. Under this pleasing reflection I rejoice to assure them that they may rely on my best wishes and endeavors to advance their prosperity.

In the meantime be assured, Gentlemen, that I entertain a proper sense of your fervent supplications to God for my temporal and eternal happiness.

G. WASHINGTON

To the Roman Catholics in the United States of America

Gentlemen:

While I now receive with much satisfaction your congratulations on my being called, by an unanimous vote, to the first station in my country; I cannot but duly notice your politeness in offering an apology for the unavoidable delay. As that delay has given you an opportunity of realizing, instead of anticipating, the benefits of the general government, you will do me the justice to believe, that your testimony of the increase of the public prosperity, enhances the pleasure which I should otherwise have experienced from your affectionate address.

I feel that my conduct, in war and in peace, has met with more general approbation than could reasonably have been expected and I find myself disposed to consider that fortunate circumstance, in a great degree, resulting from the able support and extraordinary candour of my fellow-citizens of all denominations.

The prospect of national prosperity now before us is truly animating, and ought to excite the exertions of all good men to establish and secure the happiness of their country, in the permanent duration of its freedom and independence. America, under the smiles of a Divine Providence, the protection of a good government, and the cultivation of manners, morals, and piety, cannot fail of attaining an uncommon degree of eminence, in literature, commerce, agriculture, improvements at home and respectability abroad.

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As mankind become more liberal they will be more apt to allow that all those who conduct themselves as worthy members of the community are equally entitled to the protection of civil government. I hope ever to see America among the foremost nations in examples of justice and liberality. And I presume that your fellow-citizens will not forget the patriotic part which you took in the accomplishment of their Revolution, and the establishment of their government; or the important assistance which they received from a nation in which the Roman Catholic faith is professed.

I thank you, gentlemen, for your kind concern for me. While my life and my health shall continue, in whatever situation I may be, it shall be my constant endeavour to justify the favourable sentiments which you are pleased to express of my conduct. And may the members of your society in America, animated alone by the pure spirit of Christianity, and still conducting themselves as the faithful subjects of our free government, enjoy every temporal and spiritual felicity.

G. WASHINGTON

To the Hebrew Congregation in Newport

Gentlemen:

While I received with much satisfaction your address replete with expressions of esteem, I rejoice in the opportunity of assuring you that I shall always retain grateful remembrance of the cordial welcome I experienced on my visit to Newport from all classes of citizens.

The reflection on the days of difficulty and danger which are past is rendered the more sweet from a consciousness that they are succeeded by days of uncommon prosperity and security.

If we have wisdom to make the best use of the advantages with which we are now favored, we cannot fail, under the just administration of a good government, to become a great and happy people.

The citizens of the United States of America have a right to applaud themselves for having given to mankind examples of an enlarged and liberal policy—a policy worthy of imitation. All possess alike liberty of conscience and immunities of citizenship.

It is now no more that toleration is spoken of as if it were the indulgence of one class of people that another enjoyed the exercise of their inherent natural rights, for, happily, the Government of the United States, which gives to bigotry no sanction, to persecution no assistance, requires only that they who live under its protection should demean themselves as good citizens in giving it on all occasions their effectual support.

It would be inconsistent with the frankness of my character not to avow that I am pleased with your favorable opinion of my administration and fervent wishes for my felicity.

May the children of the stock of Abraham who dwell in this land continue to merit and enjoy the good will of the other inhabitants—while every one shall sit in safety under his own vine and fig tree and there shall be none to make him afraid.

May the father of all mercies scatter light, and not darkness, upon our paths, and make us all in our several vocations useful here, and in His own due time and way everlastingly happy.

G. WASHINGTON

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Farewell Address

GEORGE WASHINGTON

September 19, 1796

Throughout his public career and well after, Washington presented himself as the citizen soldier who gave up the quiet life he loved in order to serve his country in time of need. This model of virtue, which Washington believed he had a duty to both follow and exemplify, rested on a moral code grounded in religious faith. Men would recognize their public duty only if they were taught from a young age that they had duties to God and, from that, to their fellow men. In his parting words as president, Washington seeks to make clear the reliance of public liberty on private virtue and the reliance of both on religious faith. Furthermore, Washington self-consciously repeats the view, going back to the Puritans and beyond, that liberty itself is of small use to a people that does not recognize its higher duty to worship and live according to the commands of God.

Farewell Address

Friends, and Fellow-Citizens:

The period for a new election of a Citizen, to Administer the Executive government of the United States, being not far distant, and the time actually arrived, when your thoughts must be employed in designating the person, who is to be cloathed with that important trust, it appears to me proper, especially as it may conduce to a more distinct expression of the public voice, that I should now apprise you of the resolution I have formed, to decline being considered among the number of those, out of whom a choice is to be made.

I beg you, at the same time, to do me the justice to be assured, that this resolution has not been taken, without a strict regard to all the considerations appertaining to the relation, which binds a dutiful citizen to his country, and that, in with drawing the tender of service which silence in my situation might imply, I am influenced by no diminution of zeal for your future interest, no deficiency of grateful respect for your past kindness; but am supported by a full conviction that the step is compatible with both.

The acceptance of, and continuance hitherto in, the office to which your Suffrages have twice called me, have been a uniform sacrifice of inclination to the opinion of duty, and to a deference for what appeared to be your desire. I constantly hoped, that it would have been much earlier in my power, consistently with motives, which I was not at liberty to disregard, to return to that retirement, from which I had been reluctantly drawn. The strength of my inclination to do this, previous to the last Election, had even led to the preparation of an address to declare it to you; but mature reflection on the then perplexed and critical posture of our Affairs with foreign Nations, and the unanimous advice of persons entitled to my confidence, impelled me to abandon the idea.

I rejoice, that the state of your concerns, external as well as internal, no longer renders the pursuit of inclination incompatible with the sentiment of duty, or propriety; and am persuaded whatever partiality may be retained for my services, that in the present circumstances of our country, you will not disapprove my determination to retire.

The impressions, with which I first undertook the arduous trust, were explained on the proper occasion. In the discharge of this trust, I will only say, that I have, with good intentions, contributed towards the Organization and Administration of the government, the best exertions of which a very fallible judgment was capable. Not unconscious, in the outset, of the inferiority of my qualifications, experience in my own eyes, perhaps still more in the eyes of others, has strengthned the motives to diffidence of myself; and every day the encreasing weight of years admonishes me more and more, that the shade of retirement is as necessary to me as it will be welcome. Satisfied that if any circumstances have given peculiar value to my services, they were temporary, I have the consolation to believe, that while

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choice and prudence invite me to quit the political scene, patriotism does not forbid it.

In looking forward to the moment, which is intended to terminate the career of my public life, my feelings do not permit me to suspend the deep acknowledgment of that debt of gratitude wch. I owe to my beloved country, for the many honors it has conferred upon me; still more for the stedfast confidence with which it has supported me; and for the opportunities I have thence enjoyed of manifesting my inviolable attachment, by services faithful and persevering, though in usefulness unequal to my zeal. If benefits have resulted to our country from these services, let it always be remembered to your praise, and as an instructive example in our annals, that, under circumstances in which the Passions agitated in every direction were liable to mislead, amidst appearances sometimes dubious, viscissitudes of fortune often discouraging, in situations in which not unfrequently want of Success has countenanced the spirit of criticism, the constancy of your support was the essential prop of the efforts, and a guarantee of the plans by which they were effected. Profoundly penetrated with this idea, I shall carry it with me to my grave, as a strong incitement to unceasing vows that Heaven may continue to you the choicest tokens of its beneficence; that your Union and brotherly affection may be perpetual; that the free constitution, which is the work of your hands, may be sacredly maintained; that its Administration in every department may be stamped with wisdom and Virtue; that, in fine, the happiness of the people of these States, under the auspices of liberty, may be made complete, by so careful a preservation and so prudent a use of this blessing as will acquire to them the glory of recommending it to the applause, the affection, and adoption of every nation which is yet a stranger to it.

Here, perhaps, I ought to stop. But a solicitude for your welfare, which cannot end but with my life, and the apprehension of danger, natural to that solicitude, urge me on an occasion like the present, to offer to your solemn contemplation, and to recommend to your frequent review, some sentiments, which are the result of much reflection, of no inconsiderable observation, and which appear to me all important to the permanency of your felicity as a People. These will be offered to you with the more freedom, as you can only see in them the disinterested warnings of a parting friend, who can possibly have no personal motive to biass his counsel. Nor can I forget, as an encouragement to it, your endulgent reception of my sentiments on a former and not dissimilar occasion.

Interwoven as is the love of liberty with every ligament of your hearts, no recommendation of mine is necessary to fortify or confirm the attachment.

The Unity of Government which constitutes you one people is also now dear to you. It is justly so; for it is a main Pillar in the Edifice of your real independence, the support of your tranquility at home; your peace abroad; of your safety; of your prosperity; of that very Liberty which you so highly prize. But as it is easy to foresee, that from different causes and from different quarters, much pains will be taken, many artifices employed, to weaken in your minds the conviction of this truth; as this is the point in your political fortress against which the batteries of internal and external enemies will be most constantly and actively (though often covertly and insidiously) directed, it is of infinite moment, that you should properly estimate the immense value of your national Union to your collective and individual happiness; that you should cherish a cordial, habitual and immoveable attachment to it; accustoming yourselves to think and speak of it as of the Palladium of your political safety and prosperity; watching for its preservation with jealous anxiety; discountenancing whatever may suggest even a suspicion that it can in any event be abandoned, and indignantly frowning upon the first dawning of every attempt to alienate any portion of our Country from the rest, or to enfeeble the sacred ties which now link together the various parts.

For this you have every inducement of sympathy and interest. Citizens by birth or choice, of a common country, that country has a right to concentrate your affections. The name of AMERICAN, which belongs to you, in your national capacity, must always exalt the just pride of Patriotism, more than any appellation derived from local discriminations. With slight shades of difference, you have the same Religion, Manners, Habits and political Principles. You have in a common cause fought and triumphed together. The independence and liberty you possess are the work of joint councils, and joint efforts; of common dangers, sufferings and successes.

But these considerations, however powerfully they address themselves to your sensibility are greatly outweighed by those which apply more immediately to your Interest.

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Here every portion of our country finds the most commanding motives for carefully guarding and preserving the Union of the whole.

The *North,* in an unrestrained intercourse with the *South,* protected by the equal Laws of a common government, finds in the productions of the latter, great additional resources of Maritime and commercial enterprise and precious materials of manufacturing industry. The *South* in the same Intercourse, benefitting by the Agency of the *North,* sees its agriculture grow and its commerce expand. Turning partly into its own channels the seamen of the *North,* it finds its particular navigation envigorated; and while it contributes, in different ways, to nourish and increase the general mass of the National navigation, it looks forward to the protection of a Maritime strength, to which itself is unequally adapted. The *East,* in a like intercourse with the *West,* already finds, and in the progressive improvement of interior communications, by land and water, will more and more find a valuable vent for the commodities which it brings from abroad, or manufactures at home. The *West* derives from the *East* supplies requisite to its growth and comfort, and what is perhaps of still greater consequence, it must of necessity owe the *secure* enjoyment of indispensable *outlets* for its own productions to the weight, influence, and the future Maritime strength of the Atlantic side of the Union, directed by an indissoluble community of Interest as *one Nation.* Any other tenure by which the *West* can hold this essential advantage, whether derived from its own seperate strength, or from an apostate and unnatural connection with any foreign Power, must be intrinsically precarious.

While then every part of our country thus feels an immediate and particular Interest in Union, all the parts combined cannot fail to find in the united mass of means and efforts greater strength, greater resource, proportionably greater security from external danger, a less frequent interruption of their Peace by foreign Nations; and, what is of inestimable value! they must derive from Union an exemption from those broils and Wars between themselves, which so frequently afflict neighbouring countries, not tied together by the same government; which their own rivalships alone would be sufficient to produce, but which opposite foreign alliances, attachments and intriegues would stimulate and imbitter. Hence likewise they will avoid the necessity of those overgrown Military establishments, which under any form of Government are inauspicious to liberty, and which are to be regarded as particularly hostile to Republican Liberty: In this sense it is, that your Union ought to be considered as a main prop of your liberty, and that the love of the one ought to endear to you the preservation of the other.

These considerations speak a persuasive language to every reflecting and virtuous mind, and exhibit the continuance of the UNION as a primary object of Patriotic desire. Is there a doubt, whether a common government can embrace so large a sphere? Let experience solve it. To listen to mere speculation in such a case were criminal. We are authorized to hope that a proper organization of the whole, with the auxiliary agency of governments for the respective Subdivisions, will afford a happy issue to the experiment. 'Tis well worth a fair and full experiment. With such powerful and obvious motives to Union, affecting all parts of our country, while experience shall not have demonstrated its impracticability, there will always be reason, to distrust the patriotism of those, who in any quarter may endeavor to weaken its bands.

In contemplating the causes wch. may disturb our Union, it occurs as matter of serious concern, that any ground should have been furnished for characterizing parties by *Geographical* discriminations: *Northern* and *Southern; Atlantic* and *Western;* whence designing men may endeavour to excite a belief that there is a real difference of local interests and views. One of the expedients of Party to acquire influence, within particular districts, is to misrepresent the opinions and aims of other Districts. You cannot shield yourselves too much against the jealousies and heart burnings which spring from these misrepresentations. They tend to render Alien to each other those who ought to be bound together by fraternal affection. The Inhabitants of our Western country have lately had a useful lesson on this head. They have seen, in the Negociation by the Executive, and in the unanimous ratification by the Senate, of the Treaty with Spain, and in the universal satisfaction at that event, throughout the United States, a decisive proof how unfounded were the suspicions propagated among them of a policy in the General Government and in the Atlantic States unfriendly to their Interests in regard to the Mississippi. They have been witnesses to the formation of two Treaties, that with G: Britain and that with Spain, which secure to them every thing they could desire, in respect to our Foreign relations, towards confirming their prosperity. Will it not be their wisdom to rely

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for the preservation of these advantages on the Union by wch. they were procured? Will they not henceforth be deaf to those advisers, if such there are, who would sever them from their Brethren and connect them with Aliens?

To the efficacy and permanency of Your Union, a Government for the whole is indispensable. No Alliances however strict between the parts can be an adequate substitute. They must inevitably experience the infractions and interruptions which all Alliances in all times have experienced. Sensible of this momentous truth, you have improved upon your first essay, by the adoption of a Constitution of Government, better calculated than your former for an intimate Union, and for the efficacious management of your common concerns. This government, the offspring of our own choice uninfluenced and unawed, adopted upon full investigation and mature deliberation, completely free in its principles, in the distribution of its powers, uniting security with energy, and containing within itself a provision for its own amendment, has a just claim to your confidence and your support. Respect for its authority, compliance with its Laws, acquiescence in its measures, are duties enjoined by the fundamental maxims of true Liberty. The basis of our political systems is the right of the people to make and to alter their Constitutions of Government. But the Constitution which at any time exists, 'till changed by an explicit and authentic act of the whole People, is sacredly obligatory upon all. The very idea of the power and the right of the People to establish Government presupposes the duty of every Individual to obey the established Government.

All obstructions to the execution of the Laws, all combinations and Associations, under whatever plausible character, with the real design to direct, controul, counteract, or awe the regular deliberation and action of the Constituted authorities are distructive of this fundamental principle and of fatal tendency. They serve to organize faction, to give it an artificial and extraordinary force; to put in the place of the delegated will of the Nation, the will of a party; often a small but artful and enterprizing minority of the Community; and, according to the alternate triumphs of different parties, to make the public administration the Mirror of the ill concerted and incongruous projects of faction, rather than the organ of consistent and wholesome plans digested by common councils and modefied by mutual interests. However combinations or Associations of the above description may now and then answer popular ends, they are likely, in the course of time and things, to become potent engines, by which cunning, ambitious and unprincipled men will be enabled to subvert the Power of the People, and to usurp for themselves the reins of Government; destroying afterwards the very engines which have lifted them to unjust dominion.

Towards the preservation of your Government and the permanency of your present happy state, it is requisite, not only that you steadily discountenance irregular oppositions to its acknowledged authority, but also that you resist with care the spirit of innovation upon its principles however specious the pretexts. One method of assault may be to effect, in the forms of the Constitution, alterations which will impair the energy of the system, and thus to undermine what cannot be directly overthrown. In all the changes to which you may be invited, remember that time and habit are at least as necessary to fix the true character of Governments, as of other human institutions; that experience is the surest standard, by which to test the real tendency of the existing Constitution of a country; that facility in changes upon the credit of mere hypotheses and opinion exposes to perpetual change, from the endless variety of hypotheses and opinion: and remember, especially, that for the efficient management of your common interests, in a country so extensive as ours, a Government of as much vigour as is consistent with the perfect security of Liberty is indispensable. Liberty itself will find in such a Government, with powers properly distributed and adjusted, its surest Guardian. It is indeed little else than a name, where the Government is too feeble to withstand the enterprises of faction, to confine each member of the Society within the limits prescribed by the laws and to maintain all in the secure and tranquil enjoyment of the rights of person and property.

I have already intimated to you the danger of Parties in the State, with particular reference to the founding of them on Geographical discriminations. Let me now take a more comprehensive view, and warn you in the most solemn manner against the baneful effects of the Spirit of Party, generally.

This spirit, unfortunately, is inseperable from our nature, having its root in the strongest passions of the human Mind. It exists under different shapes in all Governments, more or less stifled, controuled, or repressed; but, in those of the popular form it is seen in its greatest rankness and is truly their worst enemy.

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The alternate domination of one faction over another, sharpened by the spirit of revenge natural to party dissention, which in different ages and countries has perpetrated the most horrid enormities, is itself a frightful despotism. But this leads at length to a more formal and permanent despotism. The disorders and miseries, which result, gradually incline the minds of men to seek security and repose in the absolute power of an Individual: and sooner or later the chief of some prevailing faction more able or more fortunate than his competitors, turns this disposition to the purposes of his own elevation, on the ruins of Public Liberty.

Without looking forward to an extremity of this kind (which nevertheless ought not to be entirely out of sight) the common and continual mischiefs of the spirit of Party are sufficient to make it the interest and the duty of a wise People to discourage and restrain it.

It serves always to distract the Public Councils and enfeeble the Public administration. It agitates the Community with ill founded jealousies and false alarms, kindles the animosity of one part against another, foments occasionally riot and insurrection. It opens the door to foreign influence and corruption, which find a facilitated access to the government itself through the channels of party passions. Thus the policy and the will of one country, are subjected to the policy and will of another.

There is an opinion that parties in free countries are useful checks upon the Administration of the Government and serve to keep alive the spirit of Liberty. This within certain limits is probably true, and in Governments of a Monarchical cast Patriotism may look with endulgence, if not with favour, upon the spirit of party. But in those of the popular character, in Governments purely elective, it is a spirit not to be encouraged. From their natural tendency, it is certain there will always be enough of that spirit for every salutary purpose. And there being constant danger of excess, the effort ought to be, by force of public opinion, to mitigate and assuage it. A fire not to be quenched; it demands a uniform vigilance to prevent its bursting into a flame, lest instead of warming it should consume.

It is important, likewise, that the habits of thinking in a free Country should inspire caution in those entrusted with its administration, to confine themselves within their respective Constitutional spheres; avoiding in the exercise of the Powers of one department to encroach upon another. The spirit of encroachment tends to consolidate the powers of all the departments in one, and thus to create whatever the form of government, a real despotism. A just estimate of that love of power, and proneness to abuse it, which predominates in the human heart is sufficient to satisfy us of the truth of this position. The necessity of reciprocal checks in the exercise of political power; by dividing and distributing it into different depositories, and constituting each the Guardian of the Public Weal against invasions by the others, has been evinced by experiments ancient and modern; some of them in our country and under our own eyes. To preserve them must be as necessary as to institute them. If in the opinion of the People, the distribution or modification of the Constitutional powers be in any particular wrong, let it be corrected by an amendment in the way which the Constitution designates. But let there be no change by usurpation; for though this, in one instance, may be the instrument of good, it is the customary weapon by which free governments are destroyed. The precedent must always greatly overbalance in permanent evil any partial or transient benefit which the use can at any time yield.

Of all the dispositions and habits which lead to political prosperity, Religion and morality are indispensable supports. In vain would that man claim the tribute of Patriotism, who should labour to subvert these great Pillars of human happiness, these firmest props of the duties of Men and citizens. The mere Politician, equally with the pious man ought to respect and to cherish them. A volume could not trace all their connections with private and public felicity. Let it simply be asked where is the security for property, for reputation, for life, if the sense of religious obligation *desert* the oaths, which are the instruments of investigation in Courts of Justice? And let us with caution indulge the supposition, that morality can be maintained without religion. Whatever may be conceded to the influence of refined education on minds of peculiar structure, reason and experience both forbid us to expect that National morality can prevail in exclusion of religious principle.

'Tis substantially true, that virtue or morality is a necessary spring of popular government. The rule indeed extends with more or less force to every species of free Government. Who that is a sincere friend to it, can look with indifference upon attempts to shake the foundation of the fabric.

Promote then as an object of primary importance, Institutions for the general diffusion of knowledge. In pro-

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portion as the structure of a government gives force to public opinion, it is essential that public opinion should be enlightened.

As a very important source of strength and security, cherish public credit. One method of preserving it is to use it as sparingly as possible: avoiding occasions of expence by cultivating peace, but remembering also that timely disbursements to prepare for danger frequently prevent much greater disbursements to repel it; avoiding likewise the accumulation of debt, not only by shunning occasions of expence, but by vigorous exertions in time of Peace to discharge the Debts which unavoidable wars may have occasioned, not ungenerously throwing upon posterity the burthen which we ourselves ought to bear. The execution of these maxims belongs to your Representatives, but it is necessary that public opinion should cooperate. To facilitate to them the performance of their duty, it is essential that you should practically bear in mind, that towards the payment of debts there must be Revenue; that to have Revenue there must be taxes; that no taxes can be devised which are not more or less inconvenient and unpleasant; that the intrinsic embarrassment inseperable from the selection of the proper objects (which is always a choice of difficulties) ought to be a decisive motive for a candid construction of the Conduct of the Government in making it, and for a spirit of acquiescence in the measures for obtaining Revenue which the public exigencies may at any time dictate.

Observe good faith and justice towds. all Nations. Cultivate peace and harmony with all. Religion and morality enjoin this conduct; and can it be that good policy does not equally enjoin it? It will be worthy of a free, enlightened, and, at no distant period, a great Nation, to give to mankind the magnanimous and too novel example of a People always guided by an exalted justice and benevolence. Who can doubt that in the course of time and things the fruits of such a plan would richly repay any temporary advantages wch. might be lost by a steady adherence to it? Can it be, that Providence has not connected the permanent felicity of a Nation with its virtue? The experiment, at least, is recommended by every sentiment which ennobles human Nature. Alas! is it rendered impossible by its vices?

In the execution of such a plan nothing is more essential than that permanent, inveterate antipathies against particular Nations and passionate attachments for others should be excluded; and that in place of them just and amicable feelings towards all should be cultivated. The Nation, which indulges towards another an habitual hatred, or an habitual fondness, is in some degree a slave. It is a slave to its animosity or to its affection, either of which is sufficient to lead it astray from its duty and its interest. Antipathy in one Nation against another, disposes each more readily to offer insult and injury, to lay hold of slight causes of umbrage, and to be haughty and intractable, when accidental or trifling occasions of dispute occur. Hence frequent collisions, obstinate envenomed and bloody contests. The Nation, prompted by ill will and resentment sometimes impels to War the Government, contrary to the best calculations of policy. The Government sometimes participates in the national propensity, and adopts through passion what reason would reject; at other times, it makes the animosity of the Nation subservient to projects of hostility instigated by pride, ambition and other sinister and pernicious motives. The peace often, sometimes perhaps the Liberty, of Nations has been the victim.

So likewise, a passionate attachment of one Nation for another produces a variety of evils. Sympathy for the favourite nation, facilitating the illusion of an imaginary common interest, in cases where no real common interest exists, and infusing into one the enmities of the other, betrays the former into a participation in the quarrels and Wars of the latter, without adequate inducement or justification: It leads also to concessions to the favourite Nation of priviledges denied to others, which is apt doubly to injure the Nation making the concessions; by unnecessarily parting with what ought to have been retained; and by exciting jealousy, ill will, and a disposition to retaliate, in the parties from whom eql. priviledges are withheld: And it gives to ambitious, corrupted, or deluded citizens (who devote themselves to the favourite Nation) facility to betray, or sacrifice the interests of their own country, without odium, sometimes even with popularity; gilding with the appearances of a virtuous sense of obligation a commendable deference for public opinion, or a laudable zeal for public good, the base or foolish compliances of ambition corruption or infatuation.

As avenues to foreign influence in innumerable ways, such attachments are particularly alarming to the truly enlightened and independent Patriot. How many opportunities do they afford to tamper with domestic factions, to practice the arts of seduction, to mislead public opinion, to influence or awe the public Councils! Such an attach-

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ment of a small or weak, towards a great and powerful Nation, dooms the former to be the satellite of the latter.

Against the insidious wiles of foreign influence, (I conjure you to believe me fellow citizens) the jealousy of a free people ought to be *constantly* awake; since history and experience prove that foreign influence is one of the most baneful foes of Republican Government. But that jealousy to be useful must be impartial; else it becomes the instrument of the very influence to be avoided, instead of a defence against it. Excessive partiality for one foreign nation and excessive dislike of another, cause those whom they actuate to see danger only on one side, and serve to veil and even second the arts of influence on the other. Real Patriots, who may resist the intriegues of the favourite, are liable to become suspected and odious; while its tools and dupes usurp the applause and confidence of the people, to surrender their interests.

The Great rule of conduct for us, in regard to foreign Nations is in extending our commercial relations to have with them as little *political* connection as possible. So far as we have already formed engagements let them be fulfilled, with perfect good faith. Here let us stop. . . .

In offering to you, my Countrymen these counsels of an old and affectionate friend, I dare not hope they will make the strong and lasting impression, I could wish; that they will controul the usual current of the passions, or prevent our Nation from running the course which has hitherto marked the Destiny of Nations: But if I may even flatter myself, that they may be productive of some partial benefit, some occasional good; that they may now and then recur to moderate the fury of party spirit, to warn against the mischiefs of foreign Intriegue, to guard against the Impostures of pretended patriotism; this hope will be a full recompence for the solicitude for your welfare, by which they have been dictated.

How far in the discharge of my Official duties, I have been guided by the principles which have been delineated, the public Records and other evidences of my conduct must Witness to You and to the world. To myself, the assurance of my own conscience is, that I have at least believed myself to be guided by them. . . .

Though in reviewing the incidents of my Administration, I am unconscious of intentional error, I am nevertheless too sensible of my defects not to think it probable that I may have committed many errors. Whatever they may be I fervently beseech the Almighty to avert or mitigate the evils to which they may tend. I shall also carry with me the hope that my Country will never cease to view them with indulgence; and that after forty five years of my life dedicated to its Service, with an upright zeal, the faults of incompetent abilities will be consigned to oblivion, as myself must soon be to the Mansions of rest.

Relying on its kindness in this as in other things, and actuated by that fervent love towards it, which is so natural to a Man, who views in it the native soil of himself and his progenitors for several Generations; I anticipate with pleasing expectation that retreat, in which I promise myself to realize, without alloy, the sweet enjoyment of partaking, in the midst of my fellow Citizens, the benign influence of good Laws under a free Government, the ever favourite object of my heart, and the happy reward, as I trust, of our mutual cares, labours and dangers.

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The Rights of Conscience Inalienable

JOHN LELAND

1791

John Leland (1754–1841) was a Baptist minister, a political ally of James Madison, and a tireless advocate of religious disestablishment. Among the most radical proponents of eliminating restrictions on political rights for religious dissenters, he worked against the Episcopal Church in Virginia and the Congregational Church in New England, both of which enjoyed privileged status in their particular colony or state. His influence was in part responsible for the defeat of taxes proposed to support Episcopal Church teachings in Virginia (1785) and for eliminating public taxation in support of Congregationalist activities in Massachusetts (1833). This statement of views concerning the need to separate religious from political establishments was, in fact, delivered from a pulpit—it is a sermon. This sermon was written probably in 1791, after the United States had begun life under its new Constitution, and soon after Leland returned to New England from Virginia. Its original title was "The rights of Conscience inalienable, and therefore Religious Opinions not cognizable by Law: Or, The high-flying Churchman, stript of his legal Robe, appears a Yaho."

The Rights of Conscience Inalienable

There are four principles contended for, as the foundation of civil government, viz. birth, property, grace, and compact. The first of these is practised upon in all hereditary monarchies, where it is believed that the son of a monarch is entitled to dominion upon the decease of his father, whether he be a wise man or a fool. The second principle is built upon in all aristocratical governments, where the rich landholders have the sole rule of all their tenants, and make laws at pleasure which are binding upon all. The third principle is adopted by those kingdoms and states that require a religious test to qualify an officer of state, proscribing all non-conformists from civil and religious liberty. This was the error of Constantine's government, who first established the christian religion by law, and then proscribed the pagans and banished the Arian heretics. This error also filled the heads of the anabaptists in Germany (who were re-sprinklers): they supposed that none had a right to rule but gracious men. The same error prevails in the see of Rome, where his holiness exalts himself above all who are called gods (i.e. kings and rulers), and where no protestant heretic is allowed the liberty of a citizen. This principle is also plead for in the Ottoman empire, where it is death to call in question the divinity of Mahomet or the authenticity of the Alcoran.

The same evil has twisted itself into the British form of government; where, in the state-establishment of the church of England, no man is eligible to any office, civil or military, without he subscribes to the 39 articles and book of common-prayer; and even then, upon receiving a commission for the army the law obliges him to receive the sacrament of the Lord's supper; and no non-conformist is allowed the liberty of his conscience without he subscribes to all the 39 articles but about 4. And when that is done his purse-strings are drawn by others to pay preachers in whom he has no confidence and whom he never hears.

This was the case with several of the southern states (until the revolution) in which the church of England was established.

The fourth principle (compact) is adopted in the American states as the basis of civil government. This foundation appears to be a just one by the following investigation.

Suppose a man to remove to a desolate island and take a peaceable possession of it without injuring any, so that he should be the honest inheritor of the isle. So long as he is alone he is the absolute monarch of the place, and his own will is his law, which law is as often altered or repealed as his will changes. In process of time from this man's loins ten sons are grown to manhood and possess property. So long as they are all good men each one can be as absolute, free, and sovereign as his father; but one of the ten turns vagrant, by robbing the rest; this villain is equal to if not

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an overmatch for any one of the nine—not one of them durst engage him in single combat: reason and safety both dictate to the nine the necessity of a confederation to unite their strength together to repel or destroy the plundering knave. Upon entering into confederation some compact or agreement would be stipulated by which each would be bound to do his equal part in fatigue and expence; it would be neccessary for these nine to meet at stated times to consult means of safety and happiness; a shady tree or small cabin would answer their purpose; and in case of disagreement four must give up to five.

In this state of things their government would be perfectly democratical, every citizen being a legislator.

In a course of years, from these nine there arises nine thousand; their government can be no longer democratical, prudence would forbid it. Each tribe or district must chuse their representative, who (for the term that he is chosen) has the whole political power of his constituents. These representatives, meeting in assembly, would have power to make laws binding on their constituents; and while their time was spent in making laws for the community each one of the community must advance a little of his money as a compensation therefor. Should these representatives differ in judgment the minor must submit to the major, as in the case above.

From this simple parable the following things are demonstrated:

1. That the law was not made for a righteous man, but for the disobedient. 2. That righteous men have to part with a little of their liberty and property to preserve the rest. 3. That all power is vested in and consequently derived from the people. 4. That the law should rule over rulers, and not rulers over the law. 5. That government is founded on compact. 6. That every law made by the legislators inconsistent with the compact, modernly called a constitution, is usurpive in the legislators and not binding on the people. 7. That whenever government is found inadequate to preserve the liberty and property of the people they have an indubitable right to alter it so as to answer those purposes. 8. That legislators in their legislative capacity cannot alter the constitution, for they are hired servants of the people to act within the limits of the constitution.

From these general observations I shall pass on to examine a question, which has been the strife and contention of ages. The question is, "*Are the rights of conscience alienable, or inalienable?*"

The word *conscience* signifies *common science,* a court of judicature which the Almighty has erected in every human breast; a *censor morum* over all his actions. Conscience will ever judge right when it is rightly informed, and speak the truth when it understands it. But to advert to the question—"Does a man upon entering into social compact surrender his conscience to that society to be controled by the laws thereof, or can he in justice assist in making laws to bind his children's consciences before they are born?" I judge not, for the following reasons:

1. Every man must give an account of himself to God, and therefore every man ought to be at liberty to serve God in that way that he can best reconcile it to his conscience. If government can answer for individuals at the day of judgment, let men be controled by it in religious matters; otherwise let men be free.

2. It would be sinful for a man to surrender that to man which is to be kept sacred for God. A man's mind should be always open to conviction, and an honest man will receive that doctrine which appears the best demonstrated; and what is more common than for the best of men to change their minds? Such are the prejudices of the mind, and such the force of tradition, that a man who never alters his mind is either very weak or very stubborn. How painful then must it be to an honest heart to be bound to observe the principles of his former belief after he is convinced of their imbecility? and this ever has and ever will be the case while the rights of conscience are considered alienable.

3. But supposing it was right for a man to bind his own conscience, yet surely it is very iniquitous to bind the consciences of his children; to make fetters for them before they are born is very cruel. And yet such has been the conduct of men in almost all ages that their children have been bound to believe and worship as their fathers did, or suffer shame, loss, and sometimes life; and at best to be called dissenters, because they dissent from that which they never joined voluntarily. Such conduct in parents is worse than that of the father of Hannibal, who imposed an oath upon his son while a child never to be at peace with the Romans.

4. Finally, religion is a matter between God and individuals, religious opinions of men not being the objects of civil government nor any ways under its control.

It has often been observed by the friends of religious establishment by human laws, that no state can long continue without it; that religion will perish, and nothing but infidelity and atheism prevail.

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Are these things facts? Did not the christian religion prevail during the three first centuries, in a more glorious manner than ever it has since, not only without the aid of law, but in opposition to all the laws of haughty monarchs? And did not religion receive a deadly wound by being fostered in the arms of civil power and regulated by law? These things are so.

From that day to this we have but a few instances of religious liberty to judge by; for in almost all states civil rulers (by the instigation of covetous priests) have undertaken to steady the ark of religion by human laws; but yet we have a few of them without leaving our own land.

The state of Rhode-Island has stood above 160 years without any religious establishment. The state of New-York never had any. New-Jersey claims the same. Pennsylvania has also stood from its first settlement until now upon a liberal foundation; and if agriculture, the mechanical arts and commerce, have not flourished in these states equal to any of the states I judge wrong.

It may further be observed, that all the states now in union, saving two or three in New-England, have no legal force used about religion, in directing its course or supporting its preachers. And moreover the federal government is forbidden by the constitution to make any laws establishing any kind of religion. If religion cannot stand, therefore, without the aid of law, it is likely to fall soon in our nation, except in Connecticut and Massachusetts.

To say that "religion cannot stand without a state establishment" is not only contrary to fact (as has been proved already) but is a contradiction in phrase. Religion must have stood a time before any law could have been made about it; and if it did stand almost three hundred years without law it can still stand without it.

The evils of such an establishment are many.

1. Uninspired fallible men make their own opinions tests of orthodoxy, and use their own systems, as Procrustes used his iron bedstead, to stretch and measure the consciences of all others by. Where no toleration is granted to non-conformists either ignorance and superstition prevail or persecution rages; and if toleration is granted to restricted non-conformists the minds of men are biassed to embrace that religion which is favored and pampered by law (and thereby hypocrisy is nourished) while those who cannot stretch their consciences to believe any thing and every thing in the established creed are treated with contempt and opprobrious names; and by such means some are pampered to death by largesses and others confined from doing what good they otherwise could by penury. The first lie under a temptation to flatter the ruling party, to continue that form of government which brings the sure bread of idleness; the last to despise that government and those rulers that oppress them. The first have their eyes shut to all further light that would alter the religious machine; the last are always seeking new light, and often fall into enthusiasm. Such are the natural evils of establishment in religion by human laws.

2. Such establishments not only wean and alienate the affections of one from another on account of the different usages they receive in their religious sentiments, but are also very impolitic, especially in new countries; for what encouragement can strangers have to migrate with their arts and wealth into a state where they cannot enjoy their religious sentiments without exposing themselves to the law? when at the same time their religious opinions do not lead them to be mutinous. And further, how often have kingdoms and states been greatly weakened by religious tests! In the time of the persecution in France not less than twenty thousand people fled for the enjoyment of religious liberty.

3. These establishments metamorphose the church into a creature, and religion into a principle of state; which has a natural tendency to make men conclude that bible religion is nothing but a trick of state. Hence it is that the greatest part of the well informed in literature are overrun with deism and infidelity: nor is it likely it will ever be any better while preaching is made a trade of emolument. And if there is no difference between bible religion and state religion I shall soon fall into infidelity.

4. There are no two kingdoms or states that establish the same creed or formularies of faith (which alone proves their debility). In one kingdom a man is condemned for not believing a doctrine that he would be condemned for believing in another kingdom. Both of these establishments cannot be right—but both of them can be, and surely are, wrong.

5. The nature of such establishments, further, is to keep from civil office the best of men. Good men cannot believe what they cannot believe; and they will not subscribe to what they disbelieve, and take an oath to maintain what they conclude is error: and as the best of men differ in judgment there may be some of them in any state: their talents and virtue entitle them to fill the most important

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posts, yet because they differ from the established creed of the state they cannot—will not fill those posts. Whereas villains make no scruple to take any oath.

If these and many more evils attend such establishments—what were and still are the causes that ever there should be a state establishment of religion?

The causes are many—some of them follow.

1. The love of importance is a general evil. It is natural to men to dictate for others; they choose to command the bushel and use the whip-row, to have the halter around the necks of others to hang them at pleasure.

2. An over-fondness for a particular system or sect. This gave rise to the first human establishment of religion, by Constantine the Great. Being converted to the christian system, he established it in the Roman empire, compelled the pagans to submit, and banished the christian heretics, built fine chapels at public expence, and forced large stipends for the preachers. All this was done out of love to the christian religion: but his love operated inadvertently; for he did the christian church more harm than all the persecuting emperors did. It is said that in his day a voice was heard from heaven, saying, "Now is the poison spued into the churches." If this voice was not heard, it nevertheless was a truth; for from that day to this the christian religion has been made a stirrup to mount the steed of popularity, wealth, and ambition.

3. To produce uniformity in religion. Rulers often fear that if they leave every man to think, speak and worship as he pleases, that the whole cause will be wrecked in diversity; to prevent which they establish some standard of orthodoxy to effect uniformity. But is uniformity attainable? Millions of men, women and children, have been tortured to death to produce uniformity, and yet the world has not advanced one inch towards it. And as long as men live in different parts of the world, have different habits, education and interests, they will be different in judgment, humanly speaking.

Is conformity of sentiments in matters of religion essential to the happiness of civil government? Not at all. Government has no more to do with the religious opinions of men than it has with the principles of the mathematics. Let every man speak freely without fear—maintain the principles that he believes—worship according to his own faith, either one God, three Gods, no God, or twenty Gods; and let government protect him in so doing, i.e. see that he meets with no personal abuse or loss of property for his religious opinions. Instead of discouraging of him with proscriptions, fines, confiscation or death; let him be encouraged, as a free man, to bring forth his arguments and maintain his points with all boldness; then if his doctrine is false it will be confuted, and if it is true (though ever so novel) let others credit it. When every man has this liberty what can he wish for more? A liberal man asks for nothing more of government.

The duty of magistrates is not to judge of the divinity or tendency of doctrines, but when those principles break out into overt acts of violence then to use the civil sword and punish the vagrant for what he has done and not for the religious phrenzy that he acted from.

It is not supposable that any established creed contains the whole truth and nothing but truth; but supposing it did, which established church has got it? All bigots contend for it—each society cries out "The temple of the Lord are we." Let one society be supposed to be in possession of the whole—let that society be established by law—the creed of faith that they adopt be so consecrated by government that the man that disbelieves it must die—let this creed finally prevail over the whole world. I ask what honor *truth* gets by all this? None at all. It is famed of a Prussian, called John the Cicero, that by one oration he reconciled two contending princes actually in war; but, says the historian, "it was his six thousand horse of battle that had the most persuasive oratory." So when one creed or church prevails over another, being armed with (a coat of mail) law and sword, truth gets no honor by the victory. Whereas if all stand upon one footing, being equally protected by law as citizens (not as saints) and one prevails over another by cool investigation and fair argument, then truth gains honor, and men more firmly believe it than if it was made an essential article of salvation by law.

Truth disdains the aid of law for its defence—it will stand upon its own merits. The heathens worshipped a goddess called truth, stark naked; and all human decorations of truth serve only to destroy her virgin beauty. It is error, and error alone, that needs human support; and whenever men fly to the law or sword to protect their system of religion and force it upon others, it is evident that they have something in their system that will not bear the light and stand upon the basis of truth.

4. The common objection "that the ignorant part of the

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community are not capacitated to judge for themselves" supports the popish hierarchy, and all protestant as well as Turkish and pagan establishments, in idea.

But is this idea just? Has God chosen many of the wise and learned? Has he not hidden the mystery of gospel truth from them and revealed it unto babes? Does the world by wisdom know God? Did many of the rulers believe in Christ when he was upon earth? Were not the learned clergy (the scribes) his most inveterate enemies? Do not great men differ as much as little men in judgment? Have not almost all lawless errors crept into the world through the means of wise men (so called)? Is not a simple man, who makes nature and reason his study, a competent judge of things? Is the bible written (like Caligula's laws) so intricate and high that none but the letter-learned (according to common phrase) can read it? Is not the vision written so plain that he that runs may read it? Do not those who understand the original languages which the bible was written in differ as much in judgment as others? Are the identical copies of Matthew, Mark, Luke and John, together with the epistles, in every university, and in the hands of every master of arts? If not, have not the learned to trust to a human transcription, as much as the unlearned have to a translation? If these questions and others of a like nature can be confuted, then I will confess that it is wisdom for a conclave of bishops or a convocation of clergy to frame a system out of the bible and persuade the legislature to legalise it. No. It would be attended with so much expence, pride, domination, cruelty and bloodshed, that let me rather fall into infidelity; for no religion at all is better than that which is worse than none.

5. The ground work of these establishments of religion is clerical influence. Rulers, being persuaded by the clergy that an establishment of religion by human laws would promote the knowledge of the gospel, quell religious disputes, prevent heresy, produce uniformity, and finally be advantageous to the state, establish such creeds as are framed by the clergy; and this they often do the more readily when they are flattered by the clergy that if they thus defend the truth they will become nursing fathers to the church and merit something considerable for themselves.

What stimulates the clergy to recommend this mode of reasoning is,

1. Ignorance—not being able to confute error by fair argument.

2. Indolence—not being willing to spend any time to confute the heretical.

3. But chiefly covetousness, to get money—for it may be observed that in all these establishments settled salaries for the clergy recoverable by law are sure to be interwoven; and was not this the case, I am well convinced that there would not be many if any religious establishments in the christian world.

Having made the foregoing remarks, I shall next make some observations on the religion of Connecticut.

If the citizens of this state have any thing in existence that looks like a religious establishment, they ought to be very cautious; for being but a small part of the world they can never expect to extend their religion over the whole of it, without it is so well founded that it cannot be confuted.

If one third part of the face of the globe is allowed to be seas, the earthy parts would compose 4550 such states as Connecticut. The American empire would afford above 200 of them. And as there is no religion in this empire of the same stamp of the Connecticut standing order, upon the Saybrook platform, they may expect 199 against 1 at home, and 4549 against 1 abroad.

Connecticut and New-Haven were separate governments till the reign of Charles II when they were incorporated together by a charter, which charter is still considered by some as the basis of government.

At present (1791) there are in the state about 168 presbyterial, congregational and consociated preachers, 35 baptists, 20 episcopalians, 10 separate congregationals, and a few of other denominations. The first are the standing order of Connecticut, to whom all others have to pay obeisance. Societies of the standing order are established by law; none have right to vote therein but men of age who possess property to the amount of 40*l,* or are in full communion in the church. Their choice of ministers is by major vote; and what the society agree to give him annually is levied upon all within the limits of the society-bounds, except they bring a certificate to the clerk of the society that they attend worship elsewhere and contribute to the satisfaction of the society where they attend. The money being levied on the people is distrainable by law, and perpetually binding on the society till the minister is dismissed by a council or by death from his charge.

It is not my intention to give a detail of all the tumults, oppression, fines and imprisonments, that have hereto-

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fore been occasioned by this law-religion. These things are partly dead and buried, and if they do not rise of themselves let them sleep peaceably in the dust forever. Let it suffice on this head to say, that it is not possible in the nature of things to establish religion by human laws without perverting the design of civil law and oppressing the people.

The certificate that a dissenter produces to the society clerk (1784) must be signed by some officer of the dissenting church, and such church must be protestant-christian, for heathens, deists, Jews and papists, are not indulged in the certificate law; all of them, as well as Turks, must therefore be taxed to the standing order, although they never go among them or know where the meeting-house is.

This certificate law is founded on this principle, "that it is the duty of all persons to support the gospel and the worship of God." Is this principle founded in justice? Is it the duty of a deist to support that which he believes to be a threat and imposition? Is it the duty of a Jew to support the religion of Jesus Christ, when he really believes that he was an impostor? Must the papists be forced to pay men for preaching down the supremacy of the pope, whom they are sure is the head of the church? Must a Turk maintain a religion opposed to the alcoran, which he holds as the sacred oracles of heaven? These things want better confirmation. If we suppose that it is the duty of all these to support the protestant christian religion, as being the best religion in the world—yet how comes it to pass that human legislatures have right to force them so to do? I now call for an instance where Jesus Christ, the author of his religion, or the apostles, who were divinely inspired, ever gave orders to or intimated that the civil powers on earth ought to force people to observe the rules and doctrine of the gospel.

Mahomet called in the use of law and sword to convert people to his religion; but Jesus did not, does not.

It is the duty of men to love God with all their hearts, and their neighbors as themselves; but have legislatures authority to punish men if they do not? So there are many things that Jesus and the apostles taught that men ought to obey which yet the civil law has no concerns in.

That it is the duty of men who are taught in the word to communicate to the teacher is beyond controversy, but that it is the province of the civil law to force men to do so is denied.

The charter of Charles II is supposed to be the basis of government in Connecticut; and I request any gentleman to point out a single clause in that charter which authorises the legislature to make any religious laws, establish any religion, or force people to build meeting-houses or pay preachers. If there is no constitutional clause, it follows that the laws are usurpasive in the legislators and not binding on the people. I shall here add, that if the legislature of Connecticut have authority to establish the religion which they prefer to all religions, and force men to support it, then every legislature or legislator has the same authority; and if this be true, the separation of the christians from the pagans, the departure of the protestants from the papists, and the dissention of the presbyterians from the church of England, were all schisms of a criminal nature; and all the persecution that they have met with is the just effect of their stubbornness.

The certificate law supposes, 1. That the legislature have power to establish a religion: this is false. 2. That they have authority to grant indulgence to non-conformists: this is also false, for religious liberty is a *right* and not a *favor*. 3. That the legitimate power of government extends to force people to part with their money for religious purposes. This cannot be proved from the new testament.

The certificate law has lately passed a new modification. Justices of the peace must now examine them; this gives ministers of state a power over religious concerns that the new testament does not. To examine the law part by part would be needless, for the whole of it is wrong.

From what is said this question arises, "Are not contracts with ministers, i.e. between ministers and people, as obligatory as any contracts whatever?" The simple answer is, Yes. Ministers should share the same protection of the law that other men do, and no more. To proscribe them from seats of legislation, &c. is cruel. To indulge them with an exemption from taxes and bearing arms is a tempting emolument. The law should be silent about them; protect them as citizens (not as sacred officers) for the civil law knows no sacred religious officers.

In Rhode-Island, if a congregation of people agree to give a preacher a certain sum of money for preaching the bond is not recoverable by law.*

This law was formed upon a good principle, but, un-

*Some men, who are best informed in the laws of Rhode Island, say, that if ever there was such an act in that state there is nothing like it in existence at this day; and perhaps it is only cast upon them as a stigma because they have ever been friends to religious liberty. However, as the principle is supposable I have treated it as a real fact; and this I have done the more willingly because nine tenths of the people believe it is a fact.

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happy for the makers of that law, they were incoherent in the superstructure.

The principle of the law is, that the gospel is not to be supported by law; that civil rulers have nothing to do with religion in their civil capacities. What business had they then to make that law? The evil seemed to arise from a blending religious right and religious opinions together. Religious right should be protected to all men, religious opinion to none; i.e. government should confirm the first unto all—the last unto none; each individual having a right to differ from all others in opinion if he is so persuaded. If a number of people in Rhode-Island or elsewhere are of opinion that ministers of the gospel ought to be supported by law, and chuse to be bound by a bond to pay him, government has no just authority to declare that bond illegal; for in so doing they interfere with private contracts, and deny the people the liberty of conscience. If these people bind nobody but themselves, who is injured by their religious opinions? But if they bind an individual besides themselves, the bond is fraudulent, and ought to be declared illegal. And here lies the mischief of Connecticut religion. My lord, major vote, binds all the minor part, unless they submit to idolatry, i.e. pay an acknowledgment to a power that Jesus Christ never ordained in his church; I mean produce a certificate. Yea, further, Jews, Turks, heathens, papists and deists, if such there are in Connecticut, are bound, and have no redress: and further, this bond is not annually given, but for life, except the minister is dismissed by a number of others, who are in the same predicament with himself.

Although it is no abridgment of religious liberty for congregations to pay their preachers by legal force, in the manner prescribed above, yet it is antichristian; such a church cannot be a church of Christ, because they are not governed by Christ's laws, but by the laws of state; and such ministers do not appear like ambassadors of Christ, but like ministers of state.

The next question is this: "Suppose a congregation of people have agreed to give a minister a certain sum of money annually for life, or during good behaviour, and in a course of time some or all of them change their opinions and verily believe that the preacher is in a capital error, and really from conscience dissent from him—are they still bound to comply with their engagements to the preacher?" This question is supposable, and I believe there have been a few instances of the kind.

If men have bound themselves, honor and honesty call upon them to comply, but God and conscience call upon them to come out from among them and let such blind guides* alone. Honor and honesty are amiable virtues; but God and conscience call to perfidiousness. This shows the impropriety of such contracts, which always may, and sometimes do lead into such labyrinths. It is time enough to pay a man after his labour is over. People are not required to communicate to the teacher before they are taught. A man called of God to preach, feels a necessity to preach, and a woe if he does not. And if he is sent by Christ, he looks to him and his laws for support; and if men comply with their duty, he finds relief; if not, he must go to his field, as the priests of old did. A man cannot give a more glaring proof of his covetousness and irreligion, than to say, "If you will give me so much, then I will preach, but if not be assured I will not preach to you."

So that in answering the question, instead of determining which of the evils to chuse, either to disobey God and conscience, or break honor and honesty, I would recommend an escape of both evils, by entering into no such contracts: for the natural evils of imprudence, that men are fallen into, neither God nor man can prevent.

A minister must have a hard heart to wish men to be forced to pay him when (through conscience, enthusiasm, or a private pique) they dissent from his ministry. The spirit of the gospel disdains such measures.

The question before us is not applicable to many cases in Connecticut: the dissenting churches make no contracts for a longer term than a year, and most of them make none at all. Societies of the standing order rarely bind themselves in contract with preachers, without binding others beside themselves; and when that is the case the bond is fraudulent: and if those who are bound involuntarily can get clear, it is no breach of honor or honesty.

A few additional remarks shall close my piece.

I. The church of Rome was at first constituted according to the gospel, and at that time her faith was spoken of through the whole world. Being espoused to Christ, as a chaste virgin, she kept her bed pure for her husband, almost three hundred years; but afterwards she played the whore with the kings and princes of this world, who with

*The phrase of *blind guides,* is not intended to cast contempt upon any order of religious preachers; for, let a preacher be orthodox or heterodox, virtuous or vicious, he is always a blind guide to those who differ from him in opinion.

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their gold and wealth came in unto her, and she became a strumpet: and as she was the first christian church that ever forsook the laws of Christ for her conduct and received the laws of his rivals, i.e. was established by human law, and governed by the legalised edicts of councils, and received large sums of money to support her preachers and her worship by the force of civil power—she is called the *mother of harlots:* and all protestant churches, who are regulated by law, and force people to support their preachers, build meeting-houses and otherwise maintain their worship, are daughters of this holy mother.

II. I am not a citizen of Connecticut—the religious laws of the state do not oppress me, and I expect never will personally; but a love to religious liberty in general induces me thus to speak. Was I a resident in the state, I could not give or receive a certificate to be exempted from ministerial taxes; for in so doing I should confess that the legislature had authority to pamper one religious order in the state, and make all others pay obeisance to that sheef. It is high time to know whether all are to be free alike, and whether ministers of state are to be lords over God's heritage.

And here I shall ask the citizens of Connecticut, whether, in the months of April and September, when they chuse their deputies for the assembly, they mean to surrender to them the rights of conscience, and authorise them to make laws binding on their consciences. If not, then all such acts are contrary to the intention of constituent power, as well as unconstitutional and antichristian.

III. It is likely that one part of the people in Connecticut believe in conscience that gospel preachers should be supported by the force of law; and the other part believe that it is not in the province of civil law to interfere or any ways meddle with religious matters. How are both parties to be protected by law in their conscientious belief?

Very easily. Let all those whose consciences dictate that they ought to be taxed by law to maintain their preachers bring in their names to the society-clerk by a certain day, and then assess them all, according to their estates, to raise the sum stipulated in the contract; and all others go free. Both parties by this method would enjoy the full liberty of conscience without oppressing one another, the law use no force in matters of conscience, the evil of Rhode-Island law be escaped, and no persons could find fault with it (in a political point of view) but those who fear the consciences of too many would lie dormant, and therefore wish to force them to pay. Here let it be noted, that there are many in the world who believe in conscience that a minister is not entitled to any acknowledgment for his services without he is so poor that he cannot live without it (and thereby convert a gospel debt to alms). Though this opinion is not founded either on reason or scripture, yet it is a better opinion than that which would force them to pay a preacher by human law.

IV. How mortifying must it be to foreigners, and how far from conciliatory is it to citizens of the American states, who, when they come into Connecticut to reside must either conform to the religion of Connecticut or produce a certificate? Does this look like religious liberty or human friendship? Suppose that man (whose name need not be mentioned) that fills every American heart with pleasure and awe, should remove to Connecticut for his health, or any other cause—what a scandal would it be to the state to tax him to a presbyterian minister unless he produced a certificate informing them that he was an episcopalian?

V. The federal constitution certainly had the advantage, of any of the state constitutions, in being made by the wisest men in the whole nation, and after an experiment of a number of years trial, upon republican principles; and that constitution forbids Congress ever to establish any kind of religion, or require any religious test to qualify any officer in any department of the federal government. Let a man be pagan, Turk, Jew or Christian, he is eligible to any post in that government. So that if the principles of religious liberty, contended for in the foregoing pages, are supposed to be fraught with deism, fourteen states in the Union are now fraught with the same. But the separate states have not surrendered that (supposed) right of establishing religion to Congress. Each state retains all its power, saving what is given to the general government by the federal constitution. The assembly of Connecticut, therefore, still undertake to guide the helm of religion: and if Congress were disposed yet they could not prevent it by any power vested in them by the states. Therefore, if any of the people of Connecticut feel oppressed by the certificate law, or any other of the like nature, their proper mode of procedure will be to remonstrate against the oppression and petition the assembly for a redress of grievance.

VI. Divines generally inform us that there is such a time to come (called the Latter-Day Glory) when the knowledge of the Lord shall cover the earth as the waters do the sea, and that this day will appear upon the destruction of antichrist. If so, I am well convinced that Jesus will

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first remove all the hindrances or religious establishments, and cause all men to be free in matters of religion. When this is effected, he will say to the kings and great men of the earth, "Now see what I can do; ye have been afraid to leave the church and gospel in my hands alone, without steadying the ark by human law; but now I have taken the power and kingdom to myself, and will work for my own glory."

Here let me add, that in the southern states, where there has been the greatest freedom from religious oppression, where liberty of conscience is entirely enjoyed, there has been the greatest revival of religion; which is another proof that true religion can and will prevail best where it is left entirely to Christ.

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Letter to the Danbury Baptist Association

THOMAS JEFFERSON

January 1, 1802

Jefferson's letter to the Danbury Baptist Association expresses the belief that religious and public life should be kept strictly separate. In the letter, Jefferson articulates only one of several American views on the proper relationship between religion and politics.

Letter to the Danbury Baptist Association

To Messrs. Nehemiah Dodge, Ephram Robbins, and Stephen S. Nelson, a Committee of the Danbury Baptist Association, in the State of Connecticut

January 1, 1802

Gentlemen,—The affectionate sentiments of esteem and approbation which you are so good as to express towards me, on behalf of the Danbury Baptist Association, give me the highest satisfaction. My duties dictate a faithful and zealous pursuit of the interests of my constituents, and in proportion as they are persuaded of my fidelity to those duties, the discharge of them becomes more and more pleasing.

Believing with you that religion is a matter which lies solely between man and his God, that he owes account to none other for his faith or his worship, that the legislative powers of government reach actions only, and not opinions, I contemplate with sovereign reverence that act of the whole American people which declared that their legislature should "make no law respecting an establishment of religion, or prohibiting the free exercise thereof," thus building a wall of separation between church and State. Adhering to this expression of the supreme will of the nation in behalf of the rights of conscience, I shall see with sincere satisfaction the progress of those sentiments which tend to restore to man all his natural rights, convinced he has no natural right in opposition to his social duties.

I reciprocate your kind prayers for the protection and blessing of the common Father and Creator of man, and tender you for yourselves and your religious association, assurances of my high respect and esteem.

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